

# BASIC LEGAL AND JUDICIAL ETHICS (BLJE)

*Applied Case Digest Compendium under the Code of Professional Responsibility and Accountability (CPRA)*

Manila Law College — First Semester, AY 2026-2027

Comprehensive Law School Case Digest Compendium with CPRA Canon Syntheses & Audio-Optimized Narratives

## CASE 13: Re: Lorenzo "Larry" Gadon

*A.C. No. 13521, June 27, 2023 | Per Curiam (En Banc)*

### I. FACTS OF THE CASE:

Atty. Lorenzo Gadon was captured on a viral video clip hurling extremely foul, misogynistic, and abusive vulgarities against journalist Raissa Robles. The Supreme Court motu proprio issued a show-cause order and placed him under preventive suspension. The Court evaluated whether his public conduct and repeated profane outbursts over social media violated his ethical duties as an officer of the court.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether Atty. Gadon's scandalous, profane, and misogynistic video tirade against a journalist warrants his disbarment under the CPRA.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. The Supreme Court unanimously disbarred Atty. Gadon for gross misconduct and repeated violations of the ethical duties of propriety and dignity.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1, 2, 13, and 14; Canon VI (Accountability), Sections 33 and 34. The CPRA specifically regulates social media conduct of lawyers, mandating that lawyers shall not post false, abusive, scandalous, or degrading content.

**APPLICATION / ANALYSIS:** The Court held that the legal profession demands high standards of decency, propriety, and respect. Gadon's vulgar, misogynistic, and abhorrent language displayed in the public sphere over digital media caused irreparable damage to the public trust and the nobility of the legal profession. His history of previous suspensions demonstrated an incorrigible disregard for judicial authority and professional decorum.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Lorenzo Gadon was DISBARRED from the practice of law and his name stricken from the Roll of Attorneys.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety (Sec. 1 & 2), CPRA Canon II: Social Media (Sec. 13 & 14), CPRA Canon VI: Accountability. Specifically, under CPRA Canon II: Propriety (Sec. 1 & 2), a lawyer or judicial officer is bound by the mandate that Failure to maintain dignity and propriety in public and digital dealings. Specifically, under CPRA Canon II: Social Media (Sec. 13 & 14), a lawyer or judicial officer is bound by the mandate that Posting abusive, misogynistic, and scandalous statements on online platforms. Specifically, under CPRA Canon VI: Accountability, a lawyer or judicial officer is bound by the mandate that Imposition of the supreme penalty of disbarment for serious administrative offenses. The Supreme Court

ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Lorenzo Gadon was DISBARRED from the practice of law and his name stricken from the Roll of Attorneys.

| Canon Involved / Applied                              | Ethical Doctrine & Case Application                                                  |
|-------------------------------------------------------|--------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Propriety (Sec. 1 &amp; 2)</b>      | Failure to maintain dignity and propriety in public and digital dealings.            |
| <b>CPRA Canon II: Social Media (Sec. 13 &amp; 14)</b> | Posting abusive, misogynistic, and scandalous statements on online platforms.        |
| <b>CPRA Canon VI: Accountability</b>                  | Imposition of the supreme penalty of disbarment for serious administrative offenses. |

## **CASE 14: Ventura v. Atty. Samson**

*A.C. No. 9608, November 27, 2012 | 686 SCRA 430*

### **I. FACTS OF THE CASE:**

Complainant engaged the services of respondent Atty. Samson to handle a civil case. The respondent demanded and received substantial professional fees and filing expenses. However, he failed to file the necessary complaint, failed to inform the client of the status of the case, and when demanded to return the case funds, refused to refund the unused amounts, giving evasive excuses.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether Atty. Samson violated the ethical duties of competence, diligence, and fidelity in handling client funds and causes.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Respondent committed gross negligence and dishonesty in handling client funds.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1, 2, 6, 7; Canon IV (Competence and Diligence), Sections 1, 2, 3; CPR Canons 16, 17, 18.

**APPLICATION / ANALYSIS:** A lawyer owes fidelity to the cause of his client and must be mindful of the trust reposed in him. When a lawyer receives money from a client for a specific purpose (such as filing fees and acceptance fee), he holds it in trust and must immediately account for or return it if the purpose is not accomplished. Failure to render the required legal service and misappropriation of funds constitutes grave ethical misconduct.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Samson was SUSPENDED from the practice of law for one (1) year with an order to immediately RESTITUTE the full amount to the complainant.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Fiduciary Duty, CPRA Canon IV: Competence and Diligence. Specifically, under CPRA Canon III: Fidelity & Fiduciary Duty, a lawyer or judicial officer is bound by the mandate that Misappropriation and failure to promptly account for money received from a client. Specifically, under CPRA Canon IV: Competence and Diligence, a lawyer or

judicial officer is bound by the mandate that Gross negligence in failing to perform the legal services contracted and paid for. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Samson was **SUSPENDED** from the practice of law for one (1) year with an order to immediately **RESTITUTE** the full amount to the complainant.

| Canon Involved / Applied                             | Ethical Doctrine & Case Application                                                |
|------------------------------------------------------|------------------------------------------------------------------------------------|
| <b>CPRA Canon III: Fidelity &amp; Fiduciary Duty</b> | Misappropriation and failure to promptly account for money received from a client. |
| <b>CPRA Canon IV: Competence and Diligence</b>       | Gross negligence in failing to perform the legal services contracted and paid for. |

## **CASE 15: Guevarra v. Atty. Eala**

*A.C. No. 7136, August 1, 2007 / 529 SCRA 1*

### **I. FACTS OF THE CASE:**

Complainant Joselano Guevarra filed a disbarment complaint against Atty. Jose Emmanuel 'Noli' Eala for grossly immoral conduct. While still lawfully married, Atty. Eala engaged in an adulterous relationship with complainant's wife, Irene Moje, flaunted their relationship in public social events, lived together with her, and sired a child with her.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether engaging in an illicit, adulterous relationship with a married woman constitutes grossly immoral conduct warranting disbarment.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Adultery and concubinage by a member of the Bar constitute gross immorality.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 1; CPR Canon 1, Rule 1.01 and Canon 7, Rule 7.03; Section 27, Rule 138 of the Rules of Court.

**APPLICATION / ANALYSIS:** Good moral character is a continuing requirement for the practice of law. Grossly immoral conduct is conduct that is so corrupt as to constitute a criminal act, or so unprincipled as to be reprehensible to a high degree. Siring a child with a married woman while being married himself shows a flagrant disregard for the sanctity of marriage and the moral integrity required of lawyers.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Jose Emmanuel M. Eala was **DISBARRED** from the practice of law for grossly immoral conduct.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety (Sec. 1), CPRA Canon III: Fidelity to Law. Specifically, under CPRA Canon II: Propriety (Sec. 1), a lawyer or judicial officer is bound by the mandate that Lawyers must maintain good moral character and avoid scandalous or adulterous conduct in private life. Specifically, under CPRA Canon III: Fidelity to Law, a lawyer or judicial officer is bound by the mandate that Duty to respect and uphold the institution of marriage and the laws of the land. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and

warrants disciplinary liability, holding that Atty. Jose Emmanuel M. Eala was DISBARRED from the practice of law for grossly immoral conduct.

| Canon Involved / Applied                 | Ethical Doctrine & Case Application                                                                    |
|------------------------------------------|--------------------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Propriety (Sec. 1)</b> | Lawyers must maintain good moral character and avoid scandalous or adulterous conduct in private life. |
| <b>CPRA Canon III: Fidelity to Law</b>   | Duty to respect and uphold the institution of marriage and the laws of the land.                       |

## **CASE 16: Magayanes v. Vasquez**

*A.M. No. MTJ-23-014, April 11, 2024*

### **I. FACTS OF THE CASE:**

A verified administrative complaint was lodged against a presiding judge for gross misconduct, undue delay in resolving motions, and inappropriate fraternization with party litigants. The complainant established that the judge had off-the-record communications with an opposing counsel and accepted hospitality during the pendency of a disputed land matter.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether the judge violated the New Code of Judicial Conduct and CPRA standards on judicial propriety and impartiality.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. The judge committed gross misconduct and violated the mandate of judicial impartiality.

**LEGAL BASIS:** New Code of Judicial Conduct (A.M. No. 03-05-01-SC), Canons 1 (Independence), 2 (Integrity), 3 (Impartiality), and 4 (Propriety); CPRA Canon II.

**APPLICATION / ANALYSIS:** Judges must not only be impartial; they must appear impartial at all times. Engaging in private, ex parte communications and fraternizing with litigants whose cases are pending before their sala destroys public faith in the integrity of the judicial system. Judges must avoid any appearance of impropriety in all their activities.

**CONCLUSION / DISPOSITIVE RULING:** The respondent judge was found GUILTY of gross misconduct and FINED, with a stern warning against repetition of similar acts.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of NCJC Canon 3: Impartiality, NCJC Canon 4 / CPRA Canon II: Propriety. Specifically, under NCJC Canon 3: Impartiality, a lawyer or judicial officer is bound by the mandate that Prohibition against ex parte communications and fraternization with party litigants. Specifically, under NCJC Canon 4 / CPRA Canon II: Propriety, a lawyer or judicial officer is bound by the mandate that Duty to preserve the dignity of the bench and avoid all appearances of judicial bias. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The respondent judge was found GUILTY of gross misconduct and FINED, with a stern warning against repetition of similar acts.

| Canon Involved / Applied                       | Ethical Doctrine & Case Application                                                   |
|------------------------------------------------|---------------------------------------------------------------------------------------|
| <b>NCJC Canon 3: Impartiality</b>              | Prohibition against ex parte communications and fraternization with party litigants.  |
| <b>NCJC Canon 4 / CPRA Canon II: Propriety</b> | Duty to preserve the dignity of the bench and avoid all appearances of judicial bias. |

## **CASE 17: Linsangan v. Atty. Nicomedes Tolentino**

*A.C. No. 6672, September 4, 2009 | 598 SCRA 133*

### **I. FACTS OF THE CASE:**

Atty. Nicomedes Tolentino operated a law practice where he authorized paralegals and non-lawyer agents (labour 'runners') to solicit seafarers with maritime money claims. He distributed calling cards promising financial loans, payment of hospital bills, and 30% commission rates, effectively ambulance-chasing overseas workers.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether ambulance-chasing, soliciting legal business through non-lawyer agents, and advancing personal loans to secure retainers violate legal ethics.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Ambulance-chasing and commercialized solicitation of clients are strictly prohibited.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 17 & 18; CPR Canon 2, Rules 2.03 and 3.01; Rule 138, Section 27.

**APPLICATION / ANALYSIS:** The practice of law is a noble profession and a public calling, not a commercial trade or moneymaking venture. Lawyers are prohibited from using intermediaries, runners, or commercial advertisements to recruit clients. Promising monetary loans or financial assistance to prospective clients to capture their cases constitutes unethical champerty and ambulance-chasing.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Nicomedes Tolentino was SUSPENDED from the practice of law for one (1) year.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety (Sec. 17 & 18), CPRA Canon I: Independence. Specifically, under CPRA Canon II: Propriety (Sec. 17 & 18), a lawyer or judicial officer is bound by the mandate that Strict prohibition against commercial solicitation, ambulance-chasing, and fee-sharing with non-lawyers. Specifically, under CPRA Canon I: Independence, a lawyer or judicial officer is bound by the mandate that Maintaining professional independence from commercial recruitment rings. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Nicomedes Tolentino was SUSPENDED from the practice of law for one (1) year.

| Canon Involved / Applied                           | Ethical Doctrine & Case Application                                                                      |
|----------------------------------------------------|----------------------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Propriety (Sec. 17 &amp; 18)</b> | Strict prohibition against commercial solicitation, ambulance-chasing, and fee-sharing with non-lawyers. |

**CPRA Canon I: Independence**

Maintaining professional independence from commercial recruitment rings.

**CASE 18: Philippine Lawyers Association v. Agrava***G.R. No. L-12426, February 16, 1959 | 105 Phil. 173***I. FACTS OF THE CASE:**

The Director of the Philippine Patent Office issued a circular requiring all lawyers who wish to practice before the Patent Office to pass a special examination administered by that agency. The Philippine Lawyers Association filed a petition for prohibition contending that the Patent Director had no authority to regulate or examine members of the Bar.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether an administrative agency may require licensed lawyers to pass a special qualifying examination before practicing law before it.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. The Supreme Court possesses the exclusive constitutional power to admit, regulate, and discipline members of the Bar.

**LEGAL BASIS:** 1987 Constitution Art. VIII, Sec. 5(5); Rule 138, Rules of Court; CPRA Canon I (Independence).

**APPLICATION / ANALYSIS:** The practice before the Patent Office involves the interpretation of laws, drafting of legal specifications, and determination of rights, which constitutes the practice of law. Under the Constitution, the Supreme Court has the exclusive and plenary power over admission to the practice of law. No executive or administrative agency can add examinations, licenses, or hurdles for lawyers to practice within their jurisdiction.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court declared the Patent Office examination requirement UNCONSTITUTIONAL and VOID.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence, CPRA Canon II: Propriety & Respect for Courts. Specifically, under CPRA Canon I: Independence, a lawyer or judicial officer is bound by the mandate that Exclusive prerogative of the Supreme Court over admission and regulation of the legal profession. Specifically, under CPRA Canon II: Propriety & Respect for Courts, a lawyer or judicial officer is bound by the mandate that Administrative agencies must respect constitutional boundaries of judicial administration. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court declared the Patent Office examination requirement UNCONSTITUTIONAL and VOID.

| Canon Involved / Applied                          | Ethical Doctrine & Case Application                                                               |
|---------------------------------------------------|---------------------------------------------------------------------------------------------------|
| <b>CPRA Canon I: Independence</b>                 | Exclusive prerogative of the Supreme Court over admission and regulation of the legal profession. |
| <b>CPRA Canon II: Propriety &amp; Respect for</b> | Administrative agencies must respect constitutional boundaries of judicial                        |

## Courts

administration.

**CASE 19: Cayetano v. Monsod***G.R. No. 100113, September 3, 1991 | 201 SCRA 210***I. FACTS OF THE CASE:**

Christian Monsod was nominated by President Aquino as Chairman of the Commission on Elections (COMELEC). Renato Cayetano challenged the nomination on the ground that Monsod did not possess the constitutional qualification of having been engaged in the 'practice of law' for at least ten years, since his past career involved executive management, investment banking, and socio-civic leadership.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether the definition of the 'practice of law' is limited to active courtroom litigation or encompasses modern, multidisciplinary legal work.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. The practice of law is modern, broad, and multifaceted; it includes any activity requiring the application of legal knowledge, training, and experience.

**LEGAL BASIS:** 1987 Constitution Art. IX-C, Sec. 1(1); Rule 138, Rules of Court; CPRA Canon IV (Competence).

**APPLICATION / ANALYSIS:** The practice of law is not limited to appearing before trial courts. It embraces all advice to clients, preparation of legal instruments, contract negotiations, corporate governance, legislative drafting, and management where legal knowledge is applied. Monsod's past work in the MOPC, corporate legal departments, and civic drafting satisfied the 10-year requirement.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court DISMISSED the petition and CONFIRMED the validity of Monsod's appointment.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon IV: Competence & Diligence, CPRA Canon III: Fidelity & Service. Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer or judicial officer is bound by the mandate that Expansive definition of the practice of law beyond litigation into corporate and advisory counsel. Specifically, under CPRA Canon III: Fidelity & Service, a lawyer or judicial officer is bound by the mandate that Application of legal training to broad national and institutional public service. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court DISMISSED the petition and CONFIRMED the validity of Monsod's appointment.

| Canon Involved / Applied              | Ethical Doctrine & Case Application                                                                |
|---------------------------------------|----------------------------------------------------------------------------------------------------|
| CPRA Canon IV: Competence & Diligence | Expansive definition of the practice of law beyond litigation into corporate and advisory counsel. |
| CPRA Canon III: Fidelity & Service    | Application of legal training to broad national and institutional public service.                  |

## CASE 20: Manalang v. Atty. Cristina Benosa Buendia

*A.C. No. 12079, November 10, 2020*

### I. FACTS OF THE CASE:

Complainants engaged Atty. Buendia for the declaration of nullity of their marriages and paid professional fees of P270,000. Atty. Buendia presented fabricated court decisions and falsified Certificates of Finality purporting to be from the RTC of Malolos, Bulacan. Upon verification, the court verified that no such cases were ever filed or decided.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether fabricating judicial decisions and misleading clients constitutes gross dishonesty warranting disbarment.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Falsifying judicial records and deceiving clients is a supreme violation of legal ethics.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1 & 2; Canon III (Fidelity), Sections 1 & 2; Revised Penal Code (Falsification).

**APPLICATION / ANALYSIS:** A lawyer must never engage in unlawful, dishonest, immoral, or deceitful conduct. Fabricating court decisions and orders is an egregious act of dishonesty that directly undermines the administration of justice. Such despicable conduct demonstrates that the respondent is thoroughly unfit to remain in the Roll of Attorneys.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Cristina Benosa Buendia was DISBARRED from the practice of law and ordered to refund P270,000 to complainants with interest.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety & Honesty, CPRA Canon III: Fidelity to Courts & Clients. Specifically, under CPRA Canon II: Propriety & Honesty, a lawyer or judicial officer is bound by the mandate that Zero tolerance for fraudulent and criminal falsification of public and judicial documents. Specifically, under CPRA Canon III: Fidelity to Courts & Clients, a lawyer or judicial officer is bound by the mandate that Duty not to mislead clients with fictitious judicial remedies. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Cristina Benosa Buendia was DISBARRED from the practice of law and ordered to refund P270,000 to complainants with interest.

| Canon Involved / Applied                     | Ethical Doctrine & Case Application                                                        |
|----------------------------------------------|--------------------------------------------------------------------------------------------|
| CPRA Canon II: Propriety & Honesty           | Zero tolerance for fraudulent and criminal falsification of public and judicial documents. |
| CPRA Canon III: Fidelity to Courts & Clients | Duty not to mislead clients with fictitious judicial remedies.                             |



**CASE 21: David v. Atty. Diosdado M. Rongcal, et al.***A.C. No. 12103, June 23, 2020 | 939 SCRA 1***I. FACTS OF THE CASE:**

Complainant filed a disbarment complaint against respondents (PAO lawyers) for filing an allegedly groundless criminal case for estafa against her on behalf of an indigent client. Complainant claimed the lawyers harassed her and failed to evaluate the legal merits before filing.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether PAO lawyers commit professional misconduct for filing cases on behalf of clients after preliminary evaluation.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. In the absence of bad faith, malice, or dishonest purpose, lawyers are protected when pursuing their client's legitimate cause of action.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1 & 2; Canon IV (Competence & Diligence); CPRA Canon V (Equality & Access to Justice).

**APPLICATION / ANALYSIS:** Lawyers have a duty to represent their clients with zeal within the bounds of law. An administrative complaint for disbarment cannot be used as a retaliatory weapon against an opposing counsel simply because they filed a lawsuit for their client. Absent clear evidence of fraud or harassment, representing an indigent complainant before prosecutorial bodies is protected legal advocacy.

**CONCLUSION / DISPOSITIVE RULING:** The administrative complaint against Atty. Rongcal and fellow PAO lawyers was DISMISSED for lack of merit.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Zealous Advocacy, CPRA Canon V: Equality & Legal Aid. Specifically, under CPRA Canon III: Fidelity & Zealous Advocacy, a lawyer or judicial officer is bound by the mandate that Lawyers are duty-bound to pursue lawful claims for clients without fear of judicial harassment. Specifically, under CPRA Canon V: Equality & Legal Aid, a lawyer or judicial officer is bound by the mandate that Protecting legal aid and public attorneys in the discharge of statutory duties. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The administrative complaint against Atty. Rongcal and fellow PAO lawyers was DISMISSED for lack of merit.

| Canon Involved / Applied                               | Ethical Doctrine & Case Application                                                             |
|--------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| <b>CPRA Canon III: Fidelity &amp; Zealous Advocacy</b> | Lawyers are duty-bound to pursue lawful claims for clients without fear of judicial harassment. |
| <b>CPRA Canon V: Equality &amp; Legal Aid</b>          | Protecting legal aid and public attorneys in the discharge of statutory duties.                 |

## CASE 22: Genato v. Atty. Eligio P. Mallari

*A.C. No. 12486, October 15, 2019 | 924 SCRA 228*

### I. FACTS OF THE CASE:

Atty. Mallari was involved in a property dispute with complainant William Genato. When a traffic officer flagged down his vehicle for a violation, Atty. Mallari engaged in abusive conduct, arrogantly flashed his law credentials, and later filed a flurry of baseless suits against the judges and justices handling his cases, accusing them of bias without foundation.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether filing unmeritorious lawsuits and launching unfounded attacks against sitting judges constitutes gross misconduct.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Frivolous suits against judges and public displays of arrogance degrade the administration of justice.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1, 2, 4; Canon III (Fidelity), Section 2; Canon VI (Accountability).

**APPLICATION / ANALYSIS:** A lawyer must observe respect for the courts and judicial officers. While lawyers may seek legitimate redress against erring judges through proper channels, filing multiple vexatious and unfounded criminal and administrative suits against judges who rule against them is a form of harassment that subverts the judicial system.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Eligio P. Mallari was DISBARRED from the practice of law.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Respect for Courts & Authorities, CPRA Canon VI: Accountability. Specifically, under CPRA Canon II: Respect for Courts & Authorities, a lawyer or judicial officer is bound by the mandate that Prohibition against harassing judicial officers with baseless lawsuits. Specifically, under CPRA Canon VI: Accountability, a lawyer or judicial officer is bound by the mandate that Stringent sanctions for chronic defiance of judicial decorum. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Eligio P. Mallari was DISBARRED from the practice of law.

| Canon Involved / Applied                        | Ethical Doctrine & Case Application                                     |
|-------------------------------------------------|-------------------------------------------------------------------------|
| CPRA Canon II: Respect for Courts & Authorities | Prohibition against harassing judicial officers with baseless lawsuits. |
| CPRA Canon VI: Accountability                   | Stringent sanctions for chronic defiance of judicial decorum.           |

## **CASE 23: Atty. Honesto Ancheta Cabarroguis v. Atty. Danilo A. Basa**

*A.C. No. 8789, March 1, 2020*

### **I. FACTS OF THE CASE:**

Complainant Atty. Cabarroguis charged respondent Atty. Basa with conflict of interest and unfaithfulness to a former client. Atty. Basa had previously represented the complainant in corporate and financial transactions and subsequently represented the adverse party in a collection lawsuit involving the exact same underlying accounts.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether representing an opposing party in a matter closely connected with a former representation constitutes an impermissible conflict of interest.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. An attorney is strictly barred from representing conflicting interests without the express written consent of all concerned.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 13, 14, 15 (Conflict of Interest Rules); CPR Canon 15, Rule 15.03.

**APPLICATION / ANALYSIS:** The rule against conflict of interest is founded on the fiduciary relationship between attorney and client and the duty to preserve client confidences. An attorney may not accept a retainer against a former client if the subject matter involves information obtained during the previous engagement. The prohibition stands even after the professional relation has ceased.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Danilo A. Basa was found GUILTY of representing conflicting interests and SUSPENDED from the practice of law for six (6) months.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Conflict of Interest (Sec. 13–15), CPRA Canon III: Confidentiality. Specifically, under CPRA Canon III: Fidelity & Conflict of Interest (Sec. 13–15), a lawyer or judicial officer is bound by the mandate that Strict prohibition against adverse representation involving former client transactions. Specifically, under CPRA Canon III: Confidentiality, a lawyer or judicial officer is bound by the mandate that Preserving client confidences indefinitely beyond termination of representation. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Danilo A. Basa was found GUILTY of representing conflicting interests and SUSPENDED from the practice of law for six (6) months.

| Canon Involved / Applied                                     | Ethical Doctrine & Case Application                                                     |
|--------------------------------------------------------------|-----------------------------------------------------------------------------------------|
| CPRA Canon III: Fidelity & Conflict of Interest (Sec. 13–15) | Strict prohibition against adverse representation involving former client transactions. |
| CPRA Canon III: Confidentiality                              | Preserving client confidences indefinitely beyond termination of representation.        |

## CASE 24: Query of Atty. Karen M. Silverio-Buffe

*A.M. No. 08-6-352-RTC, August 19, 2009 | 596 SCRA 378*

### I. FACTS OF THE CASE:

Atty. Silverio-Buffe, a former Clerk of Court of RTC Romblon, resigned from the Judiciary and immediately engaged in private practice within the same territorial jurisdiction. She queried whether Section 7(b)(2) of R.A. 6713 (Code of Conduct and Ethical Standards for Public Officials and Employees) prohibiting former public officials from practicing before their former office for one year applied to lawyers resigned from the court.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether the 1-year statutory ban under R.A. 6713 applies to former court attorneys and clerks of court practicing before their former sala.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. The 1-year post-resignation practice prohibition applies fully to former court attorneys and staff to prevent undue influence and appearance of favoritism.

**LEGAL BASIS:** R.A. 6713, Section 7(b)(2); CPRA Canon I (Independence), Section 3; Canon II (Propriety), Section 22.

**APPLICATION / ANALYSIS:** The 1-year cooling-off period is a valid statutory policy aimed at maintaining public confidence in the impartiality of courts. A former clerk of court possesses institutional familiarity and relationships with sitting judges and staff that may create an unfair advantage or the perception of impropriety. The Court upheld the ban as an ethical safeguard.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court RULED that Atty. Silverio-Buffe is PROHIBITED from appearing or practicing in the court branch where she previously served for one (1) year from her resignation.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence & Public Integrity, CPRA Canon II: Propriety in Transition to Private Practice. Specifically, under CPRA Canon I: Independence & Public Integrity, a lawyer or judicial officer is bound by the mandate that Upholding post-government service restrictions to maintain judicial independence. Specifically, under CPRA Canon II: Propriety in Transition to Private Practice, a lawyer or judicial officer is bound by the mandate that Adherence to cooling-off periods under public ethics statutes. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court RULED that Atty. Silverio-Buffe is PROHIBITED from appearing or practicing in the court branch where she previously served for one (1) year from her resignation.

| Canon Involved / Applied                                   | Ethical Doctrine & Case Application                                               |
|------------------------------------------------------------|-----------------------------------------------------------------------------------|
| CPRA Canon I: Independence & Public Integrity              | Upholding post-government service restrictions to maintain judicial independence. |
| CPRA Canon II: Propriety in Transition to Private Practice | Adherence to cooling-off periods under public ethics statutes.                    |

## **CASE 25: Gabucan v. Atty. Florencio A. Narido, Jr.**

*A.C. No. 12019, September 3, 2019 | 917 SCRA 1*

### **I. FACTS OF THE CASE:**

Complainant engaged respondent Atty. Narido to represent him in an ejectment case. Complainant entrusted original land titles and legal documents to respondent. During the pendency of the case, respondent initiated business ventures with the opposing party, refused to return complainant's title documents, and filed an adverse claim on the client's property for alleged unpaid fees.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether holding client property hostage and transacting with the opposing party violates the fiduciary duty of an attorney.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. A lawyer cannot abuse his position to hold client titles hostage or engage in transactions adverse to the client.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1, 6, 7, 23 (Attorney's Retaining Lien Requirements); Canon II (Propriety).

**APPLICATION / ANALYSIS:** While an attorney has a retaining lien over client papers for unpaid lawful fees, such lien cannot be exercised abusively or used to extract unconscionable demands. An attorney must never leverage confidential client documents to prejudice the client's property rights or enter into collusive transactions with adverse litigants.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Florencio A. Narido, Jr. was **SUSPENDED** from the practice of law for two (2) years and ordered to return all original documents immediately.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Client Trust, CPRA Canon IV: Competence & Fair Dealing. Specifically, under CPRA Canon III: Fidelity & Client Trust, a lawyer or judicial officer is bound by the mandate that Fiduciary obligation to protect client documents and avoid self-dealing. Specifically, under CPRA Canon IV: Competence & Fair Dealing, a lawyer or judicial officer is bound by the mandate that Proper limits of lawful attorney's retaining liens. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Florencio A. Narido, Jr. was **SUSPENDED** from the practice of law for two (2) years and ordered to return all original documents immediately.

| Canon Involved / Applied                            | Ethical Doctrine & Case Application                                      |
|-----------------------------------------------------|--------------------------------------------------------------------------|
| <b>CPRA Canon III: Fidelity &amp; Client Trust</b>  | Fiduciary obligation to protect client documents and avoid self-dealing. |
| <b>CPRA Canon IV: Competence &amp; Fair Dealing</b> | Proper limits of lawful attorney's retaining liens.                      |

## CASE 26: Sison v. Atty. Lourdes Philina B. Dumlao

*A.C. No. 11959, April 28, 2021*

### I. FACTS OF THE CASE:

Complainant sought preliminary legal advice from respondent Atty. Dumlao via online messaging regarding an intra-family property and estate issue. Although no formal written retainer agreement was signed and no fees were paid, complainant disclosed sensitive family facts. Later, Atty. Dumlao represented an adverse relative in the probate litigation concerning the same estate.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether a lawyer-client relationship is established during preliminary consultations, and whether the duty of confidentiality and conflict of interest attaches even without a formal contract.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. A lawyer-client relationship begins the moment legal advice is sought and given; formal payment and contracts are not required.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1, 13, 27 (Confidentiality & Inception of Attorney-Client Relationship); CPR Canon 15.

**APPLICATION / ANALYSIS:** To establish a lawyer-client relationship, it is not essential that any retainer fee be paid or that a written contract be executed. It is enough that the client consulted the lawyer in professional capacity to obtain legal advice. The duty of absolute confidentiality attaches immediately upon initial consultation, and the lawyer is forever disqualified from taking the opposite side in that dispute.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Lourdes Philina B. Dumlao was found GUILTY of conflict of interest and REPRIMANDED with a stern warning.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Inception of Relationship (Sec. 1), CPRA Canon III: Conflict of Interest & Confidentiality. Specifically, under CPRA Canon III: Inception of Relationship (Sec. 1), a lawyer or judicial officer is bound by the mandate that Lawyer-client relationship attaches from preliminary consultation regardless of fees. Specifically, under CPRA Canon III: Conflict of Interest & Confidentiality, a lawyer or judicial officer is bound by the mandate that Absolute prohibition against representing opposing interests using preliminary disclosures. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Lourdes Philina B. Dumlao was found GUILTY of conflict of interest and REPRIMANDED with a stern warning.

| Canon Involved / Applied                               | Ethical Doctrine & Case Application                                                         |
|--------------------------------------------------------|---------------------------------------------------------------------------------------------|
| CPRA Canon III: Inception of Relationship (Sec. 1)     | Lawyer-client relationship attaches from preliminary consultation regardless of fees.       |
| CPRA Canon III: Conflict of Interest & Confidentiality | Absolute prohibition against representing opposing interests using preliminary disclosures. |

## CASE 27: Land Bank of the Philippines v. Pamintuan

*G.R. No. 167886, October 25, 2005 | 474 SCRA 344*

### I. FACTS OF THE CASE:

In an agrarian reform dispute, private counsel appeared on behalf of Land Bank of the Philippines (LBP) without the necessary statutory authorization from the Office of the Government Corporate Counsel (OGCC) or the statutory deputation from the Office of the Solicitor General (OSG).

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether private lawyers may appear on behalf of government-owned and controlled corporations without statutory deputation.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** NO. Private lawyers have no authority to appear on behalf of government instrumentalities without statutory OGCC / OSG deputation.

**LEGAL BASIS:** Administrative Code of 1987; CPRA Canon I (Independence); Canon II (Propriety), Section 22; Rule 138, Section 21.

**APPLICATION / ANALYSIS:** Under the law, the OGCC is the principal law office of all GOCCs, including Land Bank. A private lawyer who enters an appearance on behalf of a government corporation without statutory deputation and written authority acts without legal authority. The Court reiterated that unauthorized appearances violate procedural rules and the integrity of public legal representation.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court NULLIFIED the unauthorized representation and reinforced the exclusive mandate of government counsel.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence & Authority to Appear, CPRA Canon II: Propriety & Compliance with Law. Specifically, under CPRA Canon I: Independence & Authority to Appear, a lawyer or judicial officer is bound by the mandate that Lawyers must possess valid statutory authority before appearing for government entities. Specifically, under CPRA Canon II: Propriety & Compliance with Law, a lawyer or judicial officer is bound by the mandate that Adherence to institutional representation mandates under the Administrative Code. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court NULLIFIED the unauthorized representation and reinforced the exclusive mandate of government counsel.

| Canon Involved / Applied                                    | Ethical Doctrine & Case Application                                                      |
|-------------------------------------------------------------|------------------------------------------------------------------------------------------|
| <b>CPRA Canon I: Independence &amp; Authority to Appear</b> | Lawyers must possess valid statutory authority before appearing for government entities. |
| <b>CPRA Canon II: Propriety &amp; Compliance with Law</b>   | Adherence to institutional representation mandates under the Administrative Code.        |

## CASE 28: Mahunot v. Atty. Lord M. Marapao

*A.C. No. 10297, March 9, 2022*

### I. FACTS OF THE CASE:

Respondent Atty. Marapao drafted and filed multiple groundless and harassing criminal complaints for falsification and perjury against complainant to coerce him into surrendering possession of a disputed parcel of land. The prosecutorial offices repeatedly dismissed the charges for utter lack of probable cause.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether filing groundless, vexatious, and repetitive criminal complaints to harass an opponent constitutes professional misconduct.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Lawyers must not abuse legal processes or file groundless suits to coerce adversaries.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Section 2 (Duty to Uphold Law and Administration of Justice); Canon II (Propriety), Section 4; CPR Canon 1, Rule 1.03.

**APPLICATION / ANALYSIS:** The legal profession is dedicated to the administration of justice. A lawyer should not file or threaten to file groundless, repetitive suits simply to harass, intimidate, or exhaust an adverse party financially. Utilizing the criminal justice system as a leverage tool for private extortion or harassment warrants administrative sanction.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Lord M. Marapao was found GUILTY of gross misconduct and SUSPENDED from the practice of law for six (6) months.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Prohibition of Groundless Suits, CPRA Canon II: Propriety & Respect for Law. Specifically, under CPRA Canon III: Fidelity & Prohibition of Groundless Suits, a lawyer or judicial officer is bound by the mandate that Duty not to abuse judicial procedures to harass opposing parties. Specifically, under CPRA Canon II: Propriety & Respect for Law, a lawyer or judicial officer is bound by the mandate that Maintaining honesty and good faith in initiating court actions. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Lord M. Marapao was found GUILTY of gross misconduct and SUSPENDED from the practice of law for six (6) months.

| Canon Involved / Applied                                   | Ethical Doctrine & Case Application                               |
|------------------------------------------------------------|-------------------------------------------------------------------|
| CPRA Canon III: Fidelity & Prohibition of Groundless Suits | Duty not to abuse judicial procedures to harass opposing parties. |
| CPRA Canon II: Propriety & Respect for Law                 | Maintaining honesty and good faith in initiating court actions.   |



## CASE 29: Tionson v. Atty. Michael Flores

*A.C. No. 12423, September 1, 2020*

### I. FACTS OF THE CASE:

Atty. Flores notarized a Deed of Absolute Sale where one of the executing parties was already deceased on the date of alleged acknowledgment. Complainant showed that the signature of the decedent was forged and that respondent never verified the personal appearance or competent identity of the signatories.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether notarizing a legal instrument in the absence of the signatory constitutes gross negligence and malpractice.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Notarizing documents without the personal appearance of the executing parties violates the Notarial Rules and CPRA.

**LEGAL BASIS:** 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC); CPRA Canon II (Propriety), Section 1 & 2; CPRA Canon IV (Competence and Diligence).

**APPLICATION / ANALYSIS:** A notary public is invested with substantial public trust. Notarization converts a private document into a public instrument, entitled to full faith and credit. When a lawyer notarizes a document without verifying the physical presence and identity of the parties, he compromises the integrity of public documents and commits a grave breach of the lawyer's oath.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Michael Flores was SUSPENDED from the practice of law for one (1) year, his Notarial Commission REVOKED, and PERPETUALLY DISQUALIFIED from being commissioned as a Notary Public.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety & Notarial Integrity, CPRA Canon IV: Competence & Diligence. Specifically, under CPRA Canon II: Propriety & Notarial Integrity, a lawyer or judicial officer is bound by the mandate that Strict compliance with Notarial Rules regarding personal appearance and competent evidence of identity. Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer or judicial officer is bound by the mandate that Maintaining highest diligence in official notarial acts. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Michael Flores was SUSPENDED from the practice of law for one (1) year, his Notarial Commission REVOKED, and PERPETUALLY DISQUALIFIED from being commissioned as a Notary Public.

| Canon Involved / Applied                      | Ethical Doctrine & Case Application                                                                     |
|-----------------------------------------------|---------------------------------------------------------------------------------------------------------|
| CPRA Canon II: Propriety & Notarial Integrity | Strict compliance with Notarial Rules regarding personal appearance and competent evidence of identity. |
| CPRA Canon IV: Competence & Diligence         | Maintaining highest diligence in official notarial acts.                                                |

## CASE 30: Palma v. Maduramente

*A.C. No. 13995, January 30, 2024*

### I. FACTS OF THE CASE:

Atty. Maduramente represented a client in a real estate transaction and accepted client funds for the express purpose of paying capital gains taxes and transfer fees to the Bureau of Internal Revenue (BIR). Instead of remitting the funds, he converted them to his personal use, causing the client to incur substantial tax penalties and surcharges.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether misappropriation of client funds intended for tax assessments warrants disbarment under the CPRA.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Misappropriating client money entrusted for official payments constitutes gross dishonesty and warrant disbarment.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1, 6, 7; Canon VI (Accountability), Section 33.

**APPLICATION / ANALYSIS:** Money entrusted to a lawyer for a specific legal purpose is held in trust. The lawyer's failure to apply the funds to the intended purpose or to return them immediately upon demand gives rise to the presumption of misappropriation. Under the CPRA, misappropriation of client funds is classified as a serious offense penalized with suspension or disbarment.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Maduramente was DISBARRED from the practice of law and ordered to refund all misappropriated sums with legal interest.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Trust Funds (Sec. 6 & 7), CPRA Canon VI: Accountability. Specifically, under CPRA Canon III: Fidelity & Trust Funds (Sec. 6 & 7), a lawyer or judicial officer is bound by the mandate that Strict fiduciary duty to keep client funds segregated and unencumbered. Specifically, under CPRA Canon VI: Accountability, a lawyer or judicial officer is bound by the mandate that Disbarment for aggravated misappropriation and breach of fiduciary trust. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Maduramente was DISBARRED from the practice of law and ordered to refund all misappropriated sums with legal interest.

| Canon Involved / Applied                            | Ethical Doctrine & Case Application                                       |
|-----------------------------------------------------|---------------------------------------------------------------------------|
| CPRA Canon III: Fidelity & Trust Funds (Sec. 6 & 7) | Strict fiduciary duty to keep client funds segregated and unencumbered.   |
| CPRA Canon VI: Accountability                       | Disbarment for aggravated misappropriation and breach of fiduciary trust. |

## CASE 31: Buenavista Properties, Inc. v. Deloria

*A.C. No. 12160, August 14, 2018 | 877 SCRA 1*

### I. FACTS OF THE CASE:

Complainant engaged respondent Atty. Deloria to handle land registration proceedings. The respondent collected acceptance and litigation fees but abandoned the case, failed to attend hearings resulting in the dismissal of the petition, and subsequently went into hiding without returning the client's case records.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether abandoning a client's case and failing to attend hearings constitutes gross neglect of professional duty.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Gross negligence and abandonment of client causes warrant severe disciplinary action.

**LEGAL BASIS:** CPRA Canon IV (Competence & Diligence), Sections 1, 2, 3; CPR Canon 18, Rule 18.03 & 18.04.

**APPLICATION / ANALYSIS:** A lawyer is required to serve his client with competence and diligence. Once a lawyer accepts a case, he is bound to prosecute it with utmost devotion and zeal. Abandoning a client's cause, missing court hearings, and causing dismissal by default constitutes inexcusable professional negligence.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Deloria was SUSPENDED from the practice of law for two (2) years and ordered to return the client's litigation fees.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon IV: Competence & Diligence, CPRA Canon III: Fidelity. Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer or judicial officer is bound by the mandate that Lawyers must prosecute client cases with continuous diligence and punctuality. Specifically, under CPRA Canon III: Fidelity, a lawyer or judicial officer is bound by the mandate that Duty not to abandon client interests after collecting fees. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Deloria was SUSPENDED from the practice of law for two (2) years and ordered to return the client's litigation fees.

| Canon Involved / Applied              | Ethical Doctrine & Case Application                                            |
|---------------------------------------|--------------------------------------------------------------------------------|
| CPRA Canon IV: Competence & Diligence | Lawyers must prosecute client cases with continuous diligence and punctuality. |
| CPRA Canon III: Fidelity              | Duty not to abandon client interests after collecting fees.                    |

## CASE 32: Legaspi v. Gonzales

*A.C. No. 12076, July 28, 2020*

### I. FACTS OF THE CASE:

Atty. Gonzales notarized an Extrajudicial Settlement with Deed of Absolute Sale without requiring the personal presence of the co-heirs. The heirs proved that they never signed the deed and that one of the purported signatories was working abroad in the Middle East on the date of execution.

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether notarizing a conveyance involving absent signatories constitutes gross misconduct.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Notarizing instruments involving absent parties severely breaches the Notarial Rules.

**LEGAL BASIS:** 2004 Rules on Notarial Practice; CPRA Canon II (Propriety), Section 1 & 2; CPRA Canon IV.

**APPLICATION / ANALYSIS:** A notary public must personally verify that the parties executing a document are indeed the individuals they claim to be and that they signed freely. Falsifying notarial acknowledgments facilitates fraud and destabilizes real estate property rights. Such conduct warrants immediate suspension and revocation of notarial authority.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Gonzales was SUSPENDED from the practice of law for one (1) year and DISQUALIFIED from notarial practice.

## IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety & Truthfulness, CPRA Canon IV: Competence & Diligence. Specifically, under CPRA Canon II: Propriety & Truthfulness, a lawyer or judicial officer is bound by the mandate that Ensuring complete authenticity and personal appearance in notarial acts. Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer or judicial officer is bound by the mandate that Avoiding reckless notarial certifications. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Gonzales was SUSPENDED from the practice of law for one (1) year and DISQUALIFIED from notarial practice.

| Canon Involved / Applied                | Ethical Doctrine & Case Application                                      |
|-----------------------------------------|--------------------------------------------------------------------------|
| CPRA Canon II: Propriety & Truthfulness | Ensuring complete authenticity and personal appearance in notarial acts. |
| CPRA Canon IV: Competence & Diligence   | Avoiding reckless notarial certifications.                               |

## CASE 33: Atty. Ulep v. Legal Clinic, Inc.

*Bar Matter No. 553, June 17, 1993 | 223 SCRA 378*

## I. FACTS OF THE CASE:

The Legal Clinic, Inc. published advertisements in major newspapers offering legal services for 'secret marriages,' expedited divorces in Guam, annulments, and corporate set-ups, staffed by non-lawyers and paralegals promising quick, cheap solutions.

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether commercial advertisement of legal services and operating legal clinics staffed by non-lawyers constitutes illegal practice of law.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Commercialized advertising of legal services and unauthorized practice by non-lawyers are illegal.

**LEGAL BASIS:** Rule 138, Section 27; CPRA Canon II (Propriety), Sections 17 & 18; CPR Canons 2 and 3.

**APPLICATION / ANALYSIS:** The practice of law is a profession, not a commercial enterprise. Commercial advertising of legal services that demeans the profession, promises illicit remedies (such as sham foreign divorces), or facilitates unauthorized practice of law by corporations and non-lawyers is prohibited. Legal advertising must be dignified, modest, and truthful.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court ENJOINED and PROHIBITED The Legal Clinic, Inc. from publishing commercial advertisements and engaging in unauthorized legal practice.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety in Legal Information (Sec. 17 & 18), CPRA Canon I: Independence. Specifically, under CPRA Canon II: Propriety in Legal Information (Sec. 17 & 18), a lawyer or judicial officer is bound by the mandate that Prohibiting vulgar, misleading, or commercialized promotion of legal services. Specifically, under CPRA Canon I: Independence, a lawyer or judicial officer is bound by the mandate that Protecting the practice of law from commercial exploitation. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court ENJOINED and PROHIBITED The Legal Clinic, Inc. from publishing commercial advertisements and engaging in unauthorized legal practice.

| Canon Involved / Applied                                     | Ethical Doctrine & Case Application                                            |
|--------------------------------------------------------------|--------------------------------------------------------------------------------|
| CPRA Canon II: Propriety in Legal Information (Sec. 17 & 18) | Prohibiting vulgar, misleading, or commercialized promotion of legal services. |
| CPRA Canon I: Independence                                   | Protecting the practice of law from commercial exploitation.                   |

### CASE 34: Khan, Jr. v. Simbillo

*A.C. No. 5299, August 19, 2003 | 409 SCRA 299*

#### I. FACTS OF THE CASE:

Atty. Rizalino Simbillo advertised his legal practice in daily newspapers (Philippine Daily Inquirer) as an 'Annulment of Marriage Specialist' promising quick and guaranteed results. When investigated, he defended his ads by arguing that advertising legal services should be treated like any modern commercial service.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether advertising oneself as a 'specialist' and guaranteeing results in marital annulment cases violates legal ethics.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Self-laudatory advertising and promising guaranteed outcomes violate the prohibition on commercial solicitation.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 17 & 18; CPR Canon 2, Rule 2.03 and Canon 3, Rule 3.01.

**APPLICATION / ANALYSIS:** Lawyers cannot advertise like salesmen hawking commodities. Claiming to be a 'specialist' and promising fast annulments cheapens the administration of justice and exploits distressed individuals. Lawyers are permitted to list basic biographical facts, but boastful or commercial solicitation is strictly prohibited.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Rizalino Simbillo was SUSPENDED from the practice of law for one (1) year.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Dignified Information & Advertising, CPRA Canon I: Independence & Nobility of Profession. Specifically, under CPRA Canon II: Dignified Information & Advertising, a lawyer or judicial officer is bound by the mandate that Prohibition against self-laudatory claims, specialization boasts, and guaranteed legal outcomes. Specifically, under CPRA Canon I: Independence & Nobility of Profession, a lawyer or judicial officer is bound by the mandate that Upholding the non-commercial character of the Bar. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Rizalino Simbillo was SUSPENDED from the practice of law for one (1) year.

| Canon Involved / Applied                                       | Ethical Doctrine & Case Application                                                              |
|----------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Dignified Information &amp; Advertising</b>  | Prohibition against self-laudatory claims, specialization boasts, and guaranteed legal outcomes. |
| <b>CPRA Canon I: Independence &amp; Nobility of Profession</b> | Upholding the non-commercial character of the Bar.                                               |

### CASE 35: Linsangan v. Atty. Nicomedes Tolentino (Re-Affirmed)

*A.C. No. 6672, September 4, 2009*

#### I. FACTS OF THE CASE:

Re-affirmed landmark doctrine on ambulance-chasing where respondent lawyer employed non-lawyer runners and supplied financial advances to maritime workers to secure exclusive legal retainers.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether fee-splitting with non-lawyers and champertous loan agreements violate the core independence of the legal profession.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Sharing legal fees with non-lawyers and paying finders' fees to case runners is strictly forbidden.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 18; CPRA Canon I (Independence); Rule 138, Section 27.

**APPLICATION / ANALYSIS:** A lawyer shall not share, divide, or stipulate to divide, directly or indirectly, a legal fee with persons not licensed to practice law. Doing so compromises the attorney's independent judgment and commercializes the justice system into a predatory referral market.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Tolentino's one-year suspension was REAFFIRMED with strict warnings against repetition.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Prohibition on

Fee-Splitting, CPRA Canon I: Independence. Specifically, under CPRA Canon II: Prohibition on Fee-Splitting, a lawyer or judicial officer is bound by the mandate that Complete ban on dividing legal fees with non-lawyer agents or runners. Specifically, under CPRA Canon I: Independence, a lawyer or judicial officer is bound by the mandate that Freedom from third-party commercial control. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Tolentino's one-year suspension was REAFFIRMED with strict warnings against repetition.

| Canon Involved / Applied                    | Ethical Doctrine & Case Application                                    |
|---------------------------------------------|------------------------------------------------------------------------|
| CPRA Canon II: Prohibition on Fee-Splitting | Complete ban on dividing legal fees with non-lawyer agents or runners. |
| CPRA Canon I: Independence                  | Freedom from third-party commercial control.                           |

## CASE 36: Villatuya v. Tabalingcos

*A.C. No. 6622, July 10, 2012 | 676 SCRA 37*

### I. FACTS OF THE CASE:

Complainant charged respondent Atty. Tabalingcos with bigamy and gross immorality. Respondent contracted two simultaneous marriages during the subsistence of his first marriage without securing any judicial declaration of nullity. Additionally, respondent engaged in false statements in his public personal data sheets.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether contracting multiple bigamous marriages constitutes grossly immoral conduct warranting disbarment.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Bigamy and contracting multiple marriages show gross moral depravity and utter unfitness to practice law.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 1; CPR Canon 1, Rule 1.01 and Canon 7, Rule 7.03; Article 349, RPC.

**APPLICATION / ANALYSIS:** A member of the Bar must uphold the Constitution and obey the laws of the land. Contracting multiple marriages while a previous marriage subsists constitutes the felony of bigamy and demonstrates a profound contempt for the legal institution of marriage. Such moral delinquency renders the lawyer unworthy of the continued trust of the Court and the public.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Tabalingcos was DISBARRED from the practice of law.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety & Moral Integrity, CPRA Canon III: Fidelity to Law. Specifically, under CPRA Canon II: Propriety & Moral Integrity, a lawyer or judicial officer is bound by the mandate that Continuous obligation to uphold high moral standards in private domestic life. Specifically, under CPRA Canon III: Fidelity to Law, a lawyer or judicial officer is bound by the mandate that Zero tolerance for the commission of bigamy and deliberate violations of marital law. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Tabalingcos was DISBARRED from the practice of law.

| Canon Involved / Applied                              | Ethical Doctrine & Case Application                                                   |
|-------------------------------------------------------|---------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Propriety &amp; Moral Integrity</b> | Continuous obligation to uphold high moral standards in private domestic life.        |
| <b>CPRA Canon III: Fidelity to Law</b>                | Zero tolerance for the commission of bigamy and deliberate violations of marital law. |

## **CASE 37: Palencia v. Linsangan, et al.**

*A.C. No. 10557, July 10, 2018 / 871 SCRA 202*

### **I. FACTS OF THE CASE:**

Complainant, an injured overseas seaman, retained respondents Attys. Pedro and Gerard Linsangan to pursue disability compensation. The lawyers advanced medical loans and made complainant execute an irrevocable special power of attorney. When the foreign employer settled the claim for US\$95,000, respondents withheld the bulk of the proceeds, deducting exorbitant 35% fees and loan interests.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether deducting unconscionable fees and executing champertous contracts with vulnerable seafarers violates legal ethics.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Charging unconscionable fees and exploiting indigent/injured workers through champertous contracts violate the CPRA.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 6, 7, 41 (Reasonable Attorney's Fees); Section 20, Rule 138; Seafarers' Protection Act (R.A. 10706).

**APPLICATION / ANALYSIS:** Attorney's fees must always be reasonable and fair. Contracts stipulating unconscionable percentages (exceeding statutory caps under maritime and labor standards, e.g., 10%) combined with high-interest loan deductions are champertous and oppressive. Lawyers must never reduce their fiduciary duty to a ruthless financial exploitation of injured workers.

**CONCLUSION / DISPOSITIVE RULING:** Attys. Pedro and Gerard Linsangan were **SUSPENDED** from the practice of law for two (2) years and one (1) year, respectively, and ordered to **REFUND** the excess deducted fees.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Reasonable Legal Fees (Sec. 41), CPRA Canon V: Equality & Protection of Labor. Specifically, under CPRA Canon III: Reasonable Legal Fees (Sec. 41), a lawyer or judicial officer is bound by the mandate that Strict prohibition against unconscionable attorney's fees and champerty. Specifically, under CPRA Canon V: Equality & Protection of Labor, a lawyer or judicial officer is bound by the mandate that Special fiduciary protection required when representing disadvantaged seafarers. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Attys. Pedro and Gerard Linsangan were **SUSPENDED** from the practice of law for two (2) years and one (1) year, respectively, and ordered to **REFUND** the excess deducted fees.



| Canon Involved / Applied                                | Ethical Doctrine & Case Application                                              |
|---------------------------------------------------------|----------------------------------------------------------------------------------|
| <b>CPRA Canon III: Reasonable Legal Fees (Sec. 41)</b>  | Strict prohibition against unconscionable attorney's fees and champerty.         |
| <b>CPRA Canon V: Equality &amp; Protection of Labor</b> | Special fiduciary protection required when representing disadvantaged seafarers. |

## **CASE 38: Zamora v. Gallanosa**

*A.C. No. 10738, September 14, 2020*

### **I. FACTS OF THE CASE:**

Complainant engaged Atty. Gallanosa to handle an appeal before the Court of Appeals and paid the full filing fees and professional fees. Atty. Gallanosa failed to file the required Appellant's Brief within the reglementary period despite multiple extensions, resulting in the final dismissal of the appeal and the loss of complainant's property.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether failure to file an Appellant's Brief resulting in the loss of a client's appeal constitutes gross inexcusable negligence.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Missing appellate deadlines and causing the final dismissal of a client's case constitutes gross negligence.

**LEGAL BASIS:** CPRA Canon IV (Competence & Diligence), Sections 1, 2, 3; CPR Canon 18, Rule 18.03.

**APPLICATION / ANALYSIS:** The failure to file an appellant's brief after receiving fees and obtaining extensions of time is inexcusable neglect. An attorney owes complete devotion to the interest of his client, warm zeal in the maintenance of his rights, and the exertion of his utmost learning and ability. Allowing an appeal to lapse through sheer inaction irreparably damages the client's constitutional right to due process.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Gallanosa was SUSPENDED from the practice of law for two (2) years and ordered to refund all received fees.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon IV: Competence & Diligence (Sec. 1–3), CPRA Canon III: Fidelity. Specifically, under CPRA Canon IV: Competence & Diligence (Sec. 1–3), a lawyer or judicial officer is bound by the mandate that Punctual observance of judicial deadlines and vigorous prosecution of appeals. Specifically, under CPRA Canon III: Fidelity, a lawyer or judicial officer is bound by the mandate that Accountability for causing fatal prejudice to client rights through inaction. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Gallanosa was SUSPENDED from the practice of law for two (2) years and ordered to refund all received fees.

| Canon Involved / Applied | Ethical Doctrine & Case Application |
|--------------------------|-------------------------------------|
|--------------------------|-------------------------------------|

**CPRA Canon IV: Competence & Diligence  
(Sec. 1–3)**

Punctual observance of judicial deadlines and vigorous prosecution of appeals.

**CPRA Canon III: Fidelity**

Accountability for causing fatal prejudice to client rights through inaction.

**CASE 39: Rebarter v. Villa***A.C. No. 12516, August 4, 2025***I. FACTS OF THE CASE:**

Atty. Villa engaged in improper forum shopping and concealed the existence of a prior pending petition before the Court of Appeals when filing a subsequent injunction before the Regional Trial Court on the same cause of action and involving the same parties.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether deliberate forum shopping and submitting false certifications of non-forum shopping constitute professional misconduct.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Forum shopping constitutes a direct contempt of court and a grave violation of the lawyer's oath.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 2; Canon III (Fidelity), Section 2; Section 5, Rule 7, Rules of Court.

**APPLICATION / ANALYSIS:** Forum shopping subverts the administration of justice by creating the hazard of conflicting decisions by different tribunals on the same issue. When a lawyer signs a false certification of non-forum shopping, he commits deliberate falsehood against the court and degrades the integrity of judicial proceedings.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Villa was **SUSPENDED** from the practice of law for one (1) year with a stern warning.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Respect for Courts & Procedure, CPRA Canon III: Fidelity to Administration of Justice. Specifically, under CPRA Canon II: Respect for Courts & Procedure, a lawyer or judicial officer is bound by the mandate that Absolute duty of candor and prohibition against deceptive forum shopping. Specifically, under CPRA Canon III: Fidelity to Administration of Justice, a lawyer or judicial officer is bound by the mandate that Integrity in executing verifications and non-forum shopping certifications. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Villa was **SUSPENDED** from the practice of law for one (1) year with a stern warning.

| Canon Involved / Applied                                 | Ethical Doctrine & Case Application                                       |
|----------------------------------------------------------|---------------------------------------------------------------------------|
| <b>CPRA Canon II: Respect for Courts &amp; Procedure</b> | Absolute duty of candor and prohibition against deceptive forum shopping. |

**CPRA Canon III: Fidelity to Administration of Justice** Integrity in executing verifications and non-forum shopping certifications.

## **CASE 40: Office of the Court Administrator v. Judge Ruiz**

*A.M. No. RTJ-13-2361, February 2, 2016 | 782 SCRA 630*

### **I. FACTS OF THE CASE:**

A judicial audit conducted by the OCA revealed that respondent RTC Judge Ruiz incurred monumental delays in deciding more than one hundred cases submitted for decision beyond the constitutional 90-day period, failed to submit quarterly case reports, and falsified his monthly Certificates of Service to collect salaries.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether chronic failure to decide cases within the constitutional period and falsifying certificates of service warrant severe administrative sanctions.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Undue delay in deciding cases and falsifying certificates of service constitute gross inefficiency and dishonesty.

**LEGAL BASIS:** 1987 Constitution Art. VIII, Sec. 15; New Code of Judicial Conduct, Canons 2 (Integrity) and 6 (Competence and Diligence); CPRA Canon IV.

**APPLICATION / ANALYSIS:** Judges have a constitutional and ethical duty to decide cases promptly. The speedy disposition of cases is a cornerstone of public faith in the judiciary. Falsifying official certificates of service to falsely claim that no cases remained pending beyond the 90-day deadline constitutes gross dishonesty and serious misconduct.

**CONCLUSION / DISPOSITIVE RULING:** Judge Ruiz was found GUILTY of gross inefficiency and dishonesty and imposed a substantial FINE with forfeiture of retirement benefits.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of NCJC Canon 6: Competence and Diligence, NCJC Canon 2: Integrity. Specifically, under NCJC Canon 6: Competence and Diligence, a lawyer or judicial officer is bound by the mandate that Strict observance of constitutional deadlines for rendering judicial decisions. Specifically, under NCJC Canon 2: Integrity, a lawyer or judicial officer is bound by the mandate that Zero tolerance for fraudulent certifications of service to draw salaries. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Judge Ruiz was found GUILTY of gross inefficiency and dishonesty and imposed a substantial FINE with forfeiture of retirement benefits.

| Canon Involved / Applied                      | Ethical Doctrine & Case Application                                             |
|-----------------------------------------------|---------------------------------------------------------------------------------|
| <b>NCJC Canon 6: Competence and Diligence</b> | Strict observance of constitutional deadlines for rendering judicial decisions. |
| <b>NCJC Canon 2: Integrity</b>                | Zero tolerance for fraudulent certifications of service to draw salaries.       |

**CASE 41: So v. Lee***B.M. No. 3288, April 10, 2019 / 900 SCRA 320***I. FACTS OF THE CASE:**

Complainant charged respondent lawyer with filing deceptive pleadings, misquoting statutory provisions, and altering the official transcripts of stenographic notes to mislead the trial court regarding the testimony of an opposing witness.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether misquoting records and altering evidence before a court violates the duty of candor and honesty.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. A lawyer shall not mislead or allow the court to be misled by any artifice or deceptive misstatement.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 2; Canon III (Fidelity), Section 2; CPR Canon 10, Rule 10.02.

**APPLICATION / ANALYSIS:** Candor toward the court is a cardinal duty of all legal practitioners. A lawyer who intentionally misquotes testimonies, alters transcripts, or cites repealed statutes commits deliberate falsehood. The administration of justice relies upon the accuracy and truthfulness of lawyers' representations.

**CONCLUSION / DISPOSITIVE RULING:** Respondent was SUSPENDED from the practice of law for six (6) months.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Candor, Fairness & Honesty (Sec. 2), CPRA Canon III: Fidelity to Courts. Specifically, under CPRA Canon II: Candor, Fairness & Honesty (Sec. 2), a lawyer or judicial officer is bound by the mandate that Prohibition against misquoting records, altering facts, or misleading the court. Specifically, under CPRA Canon III: Fidelity to Courts, a lawyer or judicial officer is bound by the mandate that Preserving the integrity of trial records and evidence. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Respondent was SUSPENDED from the practice of law for six (6) months.

| Canon Involved / Applied                                      | Ethical Doctrine & Case Application                                              |
|---------------------------------------------------------------|----------------------------------------------------------------------------------|
| <b>CPRA Canon II: Candor, Fairness &amp; Honesty (Sec. 2)</b> | Prohibition against misquoting records, altering facts, or misleading the court. |
| <b>CPRA Canon III: Fidelity to Courts</b>                     | Preserving the integrity of trial records and evidence.                          |

## CASE 42: Roque v. Intermediate Appellate Court

*G.R. No. L-66935, November 11, 1985 | 139 SCRA 596*

### I. FACTS OF THE CASE:

Counsel for petitioner repeatedly filed repetitive motions for reconsideration that reiterated identical arguments already thoroughly evaluated and denied by the appellate court, deliberately stalling the execution of a final and executory judgment.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether filing repetitive and frivolous motions to obstruct execution of judgment violates ethical duties to the court.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Frivolous and dilatory tactics designed to defeat final judgments violate procedural integrity and legal ethics.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 4; CPR Canon 12, Rule 12.04; Rule 138, Section 20(g).

**APPLICATION / ANALYSIS:** A lawyer has a duty to assist in the speedy and efficient administration of justice. Once a judgment becomes final, it is the duty of counsel not to obstruct its execution through dilatory motions. Utilizing the judicial machinery to harass an opponent and thwart finality degrades public trust in judicial decrees.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court ADMONISHED counsel with a stern warning that repetition of dilatory maneuvers will be met with severe disciplinary penalties.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Efficient Administration of Justice (Sec. 4), CPRA Canon III: Fidelity to Rule of Law. Specifically, under CPRA Canon II: Efficient Administration of Justice (Sec. 4), a lawyer or judicial officer is bound by the mandate that Duty not to delay cases or file dilatory and repetitive motions. Specifically, under CPRA Canon III: Fidelity to Rule of Law, a lawyer or judicial officer is bound by the mandate that Respecting the finality and execution of judicial judgments. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court ADMONISHED counsel with a stern warning that repetition of dilatory maneuvers will be met with severe disciplinary penalties.

| Canon Involved / Applied                                    | Ethical Doctrine & Case Application                              |
|-------------------------------------------------------------|------------------------------------------------------------------|
| CPRA Canon II: Efficient Administration of Justice (Sec. 4) | Duty not to delay cases or file dilatory and repetitive motions. |
| CPRA Canon III: Fidelity to Rule of Law                     | Respecting the finality and execution of judicial judgments.     |

## CASE 43: Atty. Pedro Aguirre v. Atty. Crispin Reyes

*A.C. No. 4355, January 8, 2020*

### I. FACTS OF THE CASE:

Complainant Atty. Aguirre charged respondent Atty. Reyes with gross misconduct and malicious prosecution for repeatedly filing false administrative and criminal complaints against him across different tribunals to damage his professional reputation after losing a corporate dispute.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether weaponizing disciplinary and criminal processes against a fellow attorney constitutes professional misconduct.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Engaging in harassment and vindictive litigation against a professional colleague violates the CPRA.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 1 & 4; CPR Canon 8, Rule 8.01 (Professional Courtesy and Respect).

**APPLICATION / ANALYSIS:** Lawyers owe mutual respect, courtesy, and fairness to their peers in the Bar. Initiating baseless criminal and disbarment suits against a brother lawyer out of pure spite or retaliatory malice destroys the collegiality of the profession and constitutes an abuse of the court's disciplinary jurisdiction.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Crispin Reyes was REPRIMANDED with a stern warning.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Courtesy & Fairness to Fellow Lawyers, CPRA Canon III: Fidelity. Specifically, under CPRA Canon II: Courtesy & Fairness to Fellow Lawyers, a lawyer or judicial officer is bound by the mandate that Prohibition against abusive, malicious, and retaliatory litigation against peers. Specifically, under CPRA Canon III: Fidelity, a lawyer or judicial officer is bound by the mandate that Maintaining integrity in administrative filings. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Crispin Reyes was REPRIMANDED with a stern warning.

| Canon Involved / Applied                             | Ethical Doctrine & Case Application                                               |
|------------------------------------------------------|-----------------------------------------------------------------------------------|
| CPRA Canon II: Courtesy & Fairness to Fellow Lawyers | Prohibition against abusive, malicious, and retaliatory litigation against peers. |
| CPRA Canon III: Fidelity                             | Maintaining integrity in administrative filings.                                  |

## CASE 44: Mabini v. Raga

*A.M. No. P-06-2150, June 21, 2006 / 491 SCRA 525*

### I. FACTS OF THE CASE:

A court sheriff (Raga) collected sheriff's execution expenses directly from a party litigant without submitting the required liquidation estimate, without securing court approval, and without issuing an official court receipt.

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether direct solicitation and receipt of sheriff execution expenses without judicial approval constitutes gross misconduct.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Court personnel are strictly prohibited from demanding or receiving money from litigants outside the authorized legal process.

**LEGAL BASIS:** Section 10, Rule 141, Rules of Court; Code of Conduct for Court Personnel (A.M. No. 03-06-13-SC); CPRA Canon II.

**APPLICATION / ANALYSIS:** Sheriffs are not authorized to unilaterally determine and collect expenses for the service or execution of court writs. Under Rule 141, the sheriff must prepare an estimate, submit it to the court for approval, and have the litigant deposit the sum with the Clerk of Court. Direct collection creates the impression of extortion and shatters public confidence in court processes.

**CONCLUSION / DISPOSITIVE RULING:** The respondent sheriff was found GUILTY of gross misconduct and SUSPENDED for six (6) months.

## IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of Code of Conduct for Court Personnel: Integrity & Propriety, CPRA Canon I: Independence of Judicial Officers. Specifically, under Code of Conduct for Court Personnel: Integrity & Propriety, a lawyer or judicial officer is bound by the mandate that Zero tolerance for unauthorized financial extractions from party litigants. Specifically, under CPRA Canon I: Independence of Judicial Officers, a lawyer or judicial officer is bound by the mandate that Preserving strict institutional safeguards in writ execution. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The respondent sheriff was found GUILTY of gross misconduct and SUSPENDED for six (6) months.

| Canon Involved / Applied                                              | Ethical Doctrine & Case Application                                         |
|-----------------------------------------------------------------------|-----------------------------------------------------------------------------|
| <b>Code of Conduct for Court Personnel: Integrity &amp; Propriety</b> | Zero tolerance for unauthorized financial extractions from party litigants. |
| <b>CPRA Canon I: Independence of Judicial Officers</b>                | Preserving strict institutional safeguards in writ execution.               |

## CASE 45: Re: Show Cause Order in Calida v. Sereno (Quo Warranto Ethics Case)

*A.M. No. 18-06-01-SC, July 17, 2018 | 871 SCRA 442*

### I. FACTS OF THE CASE:

During the pendency of the quo warranto proceedings against then Chief Justice Maria Lourdes Sereno, several lawyers, including the respondent herself and external counsel, held press conferences, public speeches, and media interviews denouncing the sitting Supreme Court justices as 'biased,' 'incompetent,' and 'violators of the Constitution.'

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether public sub judice statements attacking sitting justices during a pending case violate the rules of legal ethics.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Public media tirades criticizing pending cases and attacking judicial integrity violate the sub judice rule and the CPRA.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 13, 14, 19 (Sub Judice Rule & Media Statements); CPR Canon 11, Rule 11.05 and Canon 13, Rule 13.02.

**APPLICATION / ANALYSIS:** While the public has a right to know, lawyers are officers of the court and are strictly forbidden from litigating their cases in the media or stirring public outrage against courts while a matter is sub judice. Publicly maligning sitting magistrates with inflammatory statements impairs judicial independence and degrades the public standing of the Judiciary.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court REPRIMANDED respondent Sereno and external counsel for violating the sub judice rule and rules of professional propriety.

## IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Sub Judice Rule (Sec. 19), CPRA Canon II: Respect for Courts & Magistrates (Sec. 2). Specifically, under CPRA Canon II: Sub Judice Rule (Sec. 19), a lawyer or judicial officer is bound by the mandate that Strict prohibition against media statements tending to impede or influence pending proceedings. Specifically, under CPRA Canon II: Respect for Courts & Magistrates (Sec. 2), a lawyer or judicial officer is bound by the mandate that Maintaining respectful language toward the Judiciary even in heated controversies. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court REPRIMANDED respondent Sereno and external counsel for violating the sub judice rule and rules of professional propriety.

| Canon Involved / Applied                                 | Ethical Doctrine & Case Application                                                             |
|----------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| CPRA Canon II: Sub Judice Rule (Sec. 19)                 | Strict prohibition against media statements tending to impede or influence pending proceedings. |
| CPRA Canon II: Respect for Courts & Magistrates (Sec. 2) | Maintaining respectful language toward the Judiciary even in heated controversies.              |

## CASE 46: ABS-CBN Corporation, et al. v. Andal Ampatuan, Jr.

*G.R. No. 227004, April 25, 2023*

### I. FACTS OF THE CASE:

Petitioner media companies challenged the trial court's order prohibiting media coverage and discussions of the Maguindanao Massacre trial based on the sub judice rule, asserting freedom of speech and of the press.



## II. STATEMENT OF THE ETHICAL ISSUE:

Whether the sub judice rule unconstitutionally curtails freedom of speech and the press when applied to legal commentary.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** NO. The sub judice rule is a valid constitutional restriction to preserve the right of the accused to an impartial trial free from trial by publicity.

**LEGAL BASIS:** 1987 Constitution Art. III, Sec. 14(2); CPRA Canon II (Propriety), Section 19; Rule 71, Rules of Court.

**APPLICATION / ANALYSIS:** The sub judice rule restricts statements made outside of court by lawyers and participants that have a clear and present danger of influencing the judge, creating bias, or obstructing the fair administration of justice. Courts must balance freedom of expression against the paramount right of every accused to an impartial, fair trial untouched by media sensationalism.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court UPHELD the validity of the sub judice rule while providing balanced guidelines for fair and objective public reporting.

## IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Sub Judice Rule & Trial by Publicity, CPRA Canon I: Judicial Independence & Fair Trial. Specifically, under CPRA Canon II: Sub Judice Rule & Trial by Publicity, a lawyer or judicial officer is bound by the mandate that Lawyers must avoid extrajudicial commentary that creates prejudice in active trials. Specifically, under CPRA Canon I: Judicial Independence & Fair Trial, a lawyer or judicial officer is bound by the mandate that Insulating judicial decision-making from external media pressure. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court UPHELD the validity of the sub judice rule while providing balanced guidelines for fair and objective public reporting.

| Canon Involved / Applied                            | Ethical Doctrine & Case Application                                                  |
|-----------------------------------------------------|--------------------------------------------------------------------------------------|
| CPRA Canon II: Sub Judice Rule & Trial by Publicity | Lawyers must avoid extrajudicial commentary that creates prejudice in active trials. |
| CPRA Canon I: Judicial Independence & Fair Trial    | Insulating judicial decision-making from external media pressure.                    |

## CASE 47: Bruselas, Jr. v. Mallari

*A.C. No. 9683, April 18, 2023*

### I. FACTS OF THE CASE:

Atty. Eligio Mallari filed multiple administrative and criminal complaints against Court of Appeals Associate Justice Bruselas, Jr. and his division colleagues after they rendered an adverse decision against his client. In his pleadings, Atty. Mallari accused the justices of accepting bribes and being 'ignorant of the law' without presenting any shred of proof.

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether reckless, unsubstantiated allegations of corruption against appellate magistrates warrant disbarment.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Scurrilous and malicious attacks on the integrity of appellate justices warrant the ultimate penalty of disbarment.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1, 2, 4; Canon VI (Accountability), Section 33.

**APPLICATION / ANALYSIS:** A lawyer's right to criticize the acts of courts and judges is not absolute. Criticism must be respectful, bona fide, and supported by credible facts. Making reckless, scandalous, and defamatory charges of bribery and ignorance against judges simply because an adverse ruling was issued is an intolerable attack on the Judiciary.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Eligio P. Mallari was DISBARRED from the practice of law.

## IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Respect for Judicial Hierarchy, CPRA Canon VI: Accountability. Specifically, under CPRA Canon II: Respect for Judicial Hierarchy, a lawyer or judicial officer is bound by the mandate that Prohibition against unfounded and scurrilous attacks against sitting magistrates. Specifically, under CPRA Canon VI: Accountability, a lawyer or judicial officer is bound by the mandate that Disbarment for habitual and unsubstantiated defamation of judges. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Eligio P. Mallari was DISBARRED from the practice of law.

| Canon Involved / Applied                      | Ethical Doctrine & Case Application                                               |
|-----------------------------------------------|-----------------------------------------------------------------------------------|
| CPRA Canon II: Respect for Judicial Hierarchy | Prohibition against unfounded and scurrilous attacks against sitting magistrates. |
| CPRA Canon VI: Accountability                 | Disbarment for habitual and unsubstantiated defamation of judges.                 |

## CASE 48: Domingo, et al. v. Badoy-Partosa

*A.M. No. 22-09-16-SC, August 2023*

## I. FACTS OF THE CASE:

Administrative complaint filed against a public official/lawyer for making derogatory, malicious, and red-tagging public statements on social media and broadcast programs against human rights lawyers, judicial officers, and court orders.

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether red-tagging and using social media to threaten and demean legal practitioners and judges violate the CPRA.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Red-tagging, inciting violence, and demeaning the legal profession online violate the CPRA social media and propriety canons.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1, 2, 13, 14; Canon VI (Accountability).

**APPLICATION / ANALYSIS:** The CPRA explicitly establishes binding standards for social media use by lawyers. Members of the Bar, especially those holding public office, must not use digital platforms to incite violence, spread malicious labels (such as red-tagging), or harass lawyers and judicial officers. Such behavior endangers lives and compromises the rule of law.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court found the respondent GUILTY of gross misconduct and imposed severe administrative sanctions.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Responsible Social Media Use (Sec. 13 & 14), CPRA Canon III: Fidelity to Human Rights & Rule of Law. Specifically, under CPRA Canon II: Responsible Social Media Use (Sec. 13 & 14), a lawyer or judicial officer is bound by the mandate that Strict prohibition against online harassment, red-tagging, and inciting hostility. Specifically, under CPRA Canon III: Fidelity to Human Rights & Rule of Law, a lawyer or judicial officer is bound by the mandate that Protecting lawyers and advocates from unlawful harassment. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court found the respondent GUILTY of gross misconduct and imposed severe administrative sanctions.

| Canon Involved / Applied                                   | Ethical Doctrine & Case Application                                                |
|------------------------------------------------------------|------------------------------------------------------------------------------------|
| CPRA Canon II: Responsible Social Media Use (Sec. 13 & 14) | Strict prohibition against online harassment, red-tagging, and inciting hostility. |
| CPRA Canon III: Fidelity to Human Rights & Rule of Law     | Protecting lawyers and advocates from unlawful harassment.                         |

### CASE 49: Ariel "Aga" Muhlach v. Executive Judge Ma. Angela Acompanado-Arroyo

*A.M. No. RTJ-15-2439, August 26, 2015 | 768 SCRA 155*

#### I. FACTS OF THE CASE:

Actor/politician Aga Muhlach filed an administrative complaint against an RTC Executive Judge for alleged bias, gross ignorance of the law, and undue delay in resolving an election registration appeal involving his voter disqualification case in Camarines Sur.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether an error in judgment or procedural ruling by a judge constitutes gross ignorance of the law in the absence of fraud or malice.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** NO. In the absence of bad faith, corrupt motive, or gross incompetence, judicial rulings are not subject to administrative discipline.

**LEGAL BASIS:** New Code of Judicial Conduct, Canon 3 (Impartiality) and Canon 6 (Competence); CPRA Canon II.

**APPLICATION / ANALYSIS:** As a matter of public policy, not every erroneous order or decision rendered by a judge makes them administratively liable. The proper remedy for an aggrieved litigant is judicial review (appeal or

certiorari), not the immediate filing of an administrative case against the judge. Only when the error is tainted with malice, fraud, or gross ignorance will administrative liability attach.

**CONCLUSION / DISPOSITIVE RULING:** The administrative complaint against Judge Acompanado-Arroyo was DISMISSED for lack of merit.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of NCJC Canon 1: Judicial Independence, CPRA Canon II: Respect for Courts. Specifically, under NCJC Canon 1: Judicial Independence, a lawyer or judicial officer is bound by the mandate that Shielding judges from harassment complaints over good-faith judicial decisions. Specifically, under CPRA Canon II: Respect for Courts, a lawyer or judicial officer is bound by the mandate that Exhaustion of regular judicial remedies before resorting to administrative actions. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The administrative complaint against Judge Acompanado-Arroyo was DISMISSED for lack of merit.

| Canon Involved / Applied            | Ethical Doctrine & Case Application                                                 |
|-------------------------------------|-------------------------------------------------------------------------------------|
| NCJC Canon 1: Judicial Independence | Shielding judges from harassment complaints over good-faith judicial decisions.     |
| CPRA Canon II: Respect for Courts   | Exhaustion of regular judicial remedies before resorting to administrative actions. |

### CASE 50: Bellosillo v. The Board of Governors of the IBP

*G.R. No. 126980, March 31, 2006 | 486 SCRA 152*

#### I. FACTS OF THE CASE:

Petitioners challenged elections in the Integrated Bar of the Philippines (IBP) where factions and fraternity alliances allegedly engaged in partisan campaigning, vote-buying, and political maneuvering to secure national IBP officer positions.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether fraternity alliances, partisan politicking, and vote-buying within the IBP violate the fundamental objectives of the Integrated Bar.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Partisan politics, fraternity factionalism, and vote-buying within the IBP violate the strictly non-partisan character of the Bar.

**LEGAL BASIS:** IBP By-Laws; 1987 Constitution Art. VIII, Sec. 5(5); CPRA Canon I (Independence) & Canon II (Propriety).

**APPLICATION / ANALYSIS:** The Integrated Bar of the Philippines is non-partisan and dedicated to the promotion of justice and the elevated standards of legal ethics. Utilizing fraternity patronage, lavish campaign expenses, and factional horse-trading to gain IBP office degrades the integrity of the Bar. The Supreme Court maintains supervisory power over the IBP to nullify tainted elections.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court NULLIFIED the tainted IBP election results and ORDERED strict non-partisan compliance with IBP election guidelines.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence of the Bar, CPRA Canon II: Propriety in Bar Leadership. Specifically, under CPRA Canon I: Independence of the Bar, a lawyer or judicial officer is bound by the mandate that Preserving the non-partisan, independent character of the Integrated Bar. Specifically, under CPRA Canon II: Propriety in Bar Leadership, a lawyer or judicial officer is bound by the mandate that Prohibiting corrupt campaign practices and fraternity patronage in professional bodies. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court NULLIFIED the tainted IBP election results and ORDERED strict non-partisan compliance with IBP election guidelines.

| Canon Involved / Applied                          | Ethical Doctrine & Case Application                                                     |
|---------------------------------------------------|-----------------------------------------------------------------------------------------|
| <b>CPRA Canon I: Independence of the Bar</b>      | Preserving the non-partisan, independent character of the Integrated Bar.               |
| <b>CPRA Canon II: Propriety in Bar Leadership</b> | Prohibiting corrupt campaign practices and fraternity patronage in professional bodies. |

### CASE 51: Heirs of Sotto v. Palicte

*G.R. No. 159691, February 17, 2014 | 716 SCRA 175*

#### I. FACTS OF THE CASE:

Counsel for the petitioners filed a succession of multiple petitions before different courts and the Supreme Court involving the exact same parcel of land, despite five prior final judgments confirming title in favor of respondent Palicte. Counsel disguised each petition with minor rewording to re-litigate the decades-old dispute.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether filing repetitive suits to re-litigate issues settled by final judgments constitutes willful forum shopping and abuse of court processes.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Willful forum shopping and repeatedly resurrecting settled cases warrant severe disciplinary sanctions against counsel.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 2; Canon III (Fidelity), Section 2; Section 5, Rule 7, Rules of Court; Rule 138, Section 20(g).

**APPLICATION / ANALYSIS:** The principle of res judicata is a rule of public peace. When a judgment becomes final, litigation must end. A lawyer who assists a client in filing endless, repetitive suits to reopen settled matters commits forum shopping, wastes judicial time, and abuses the court's processes.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court assessed TREBLE COSTS against petitioners' counsel and referred the lawyer to the Bar Confidant for disciplinary investigation.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Respect for Judicial Finality, CPRA Canon III: Candor & Good Faith. Specifically, under CPRA Canon II: Respect for Judicial Finality, a lawyer or judicial officer is bound by the mandate that Duty to respect final judgments and refrain from filing vexatious, repetitive lawsuits. Specifically, under CPRA Canon III: Candor & Good Faith, a lawyer or judicial officer is bound by the mandate that Strict prohibition against disguised forum shopping. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court assessed TREBLE COSTS against petitioners' counsel and referred the lawyer to the Bar Confidant for disciplinary investigation.

| Canon Involved / Applied                     | Ethical Doctrine & Case Application                                                     |
|----------------------------------------------|-----------------------------------------------------------------------------------------|
| CPRA Canon II: Respect for Judicial Finality | Duty to respect final judgments and refrain from filing vexatious, repetitive lawsuits. |
| CPRA Canon III: Candor & Good Faith          | Strict prohibition against disguised forum shopping.                                    |

### CASE 52: Crisostomo, et al. v. Nazareno

*A.C. No. 6677, June 10, 2014 | 725 SCRA 439*

#### I. FACTS OF THE CASE:

Atty. Nazareno notarized false declarations in voter registration affidavits and petitions for exclusion of voters. He was established to have signed as notary public without the affiants personally appearing before him and while knowing that the factual statements were fabricated for partisan political purposes.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether a notary public who signs false voter documents without personal appearance commits gross professional misconduct.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Notarizing false political affidavits without personal appearance is a severe breach of notarial and ethical duties.

**LEGAL BASIS:** 2004 Rules on Notarial Practice; CPRA Canon II (Propriety), Sections 1 & 2; CPR Canon 10, Rule 10.01.

**APPLICATION / ANALYSIS:** A notary public must not affix his official signature and seal to documents that contain falsehoods or where the parties did not personally appear. Participating in fraudulent election maneuvers by authenticating sham voter documents compromises the integrity of democratic processes and degrades the legal profession.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Nazareno was SUSPENDED from the practice of law for one (1) year, his Notarial Commission REVOKED, and DISQUALIFIED from notarial appointment.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Truthfulness & Notarial Duty, CPRA Canon III: Fidelity to Democracy & Rule of Law. Specifically, under CPRA Canon II: Truthfulness

& Notarial Duty, a lawyer or judicial officer is bound by the mandate that Absolute requirement of personal appearance and truth in notarial acknowledgments. Specifically, under CPRA Canon III: Fidelity to Democracy & Rule of Law, a lawyer or judicial officer is bound by the mandate that Prohibition against facilitating fraudulent election schemes. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Nazareno was **SUSPENDED** from the practice of law for one (1) year, his Notarial Commission **REVOKED**, and **DISQUALIFIED** from notarial appointment.

| Canon Involved / Applied                                       | Ethical Doctrine & Case Application                                                |
|----------------------------------------------------------------|------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Truthfulness &amp; Notarial Duty</b>         | Absolute requirement of personal appearance and truth in notarial acknowledgments. |
| <b>CPRA Canon III: Fidelity to Democracy &amp; Rule of Law</b> | Prohibition against facilitating fraudulent election schemes.                      |

### **CASE 53: Kimteng, et al. v. Atty. Young, et al.**

*G.R. No. 210554, August 5, 2015 / 765 SCRA 555*

#### **I. FACTS OF THE CASE:**

Petitioners charged respondents Attys. Young and associates with perjury and unethical practice for submitting an alleged false affidavit in a pending SEC intra-corporate dispute. The lawyers were executing their duties based on client instructions and available corporate records.

#### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether lawyers may be held liable for perjury or disciplinary breach for presenting affidavits prepared in good faith based on client records.

#### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. In the absence of proof of deliberate fabrication, presenting pleadings and affidavits based on client disclosures is protected advocacy.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1 & 2; Rule 138, Section 20.

**APPLICATION / ANALYSIS:** A lawyer is not an insurer of the absolute factual accuracy of every client disclosure, provided the lawyer acts in good faith, conducts reasonable inquiry, and does not knowingly present perjured testimony. Zealous advocacy allows counsel to present client claims without personal criminal liability unless fraudulent conspiracy is established.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court **DISMISSED** the complaint against the respondents for lack of merit.

#### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Zealous Representation within Law, CPRA Canon IV: Competence & Diligence. Specifically, under CPRA Canon III: Zealous Representation within Law, a lawyer or judicial officer is bound by the mandate that Protecting counsel who act in good faith on client instructions and records. Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer

or judicial officer is bound by the mandate that Conducting reasonable factual inquiry before filing pleadings. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court DISMISSED the complaint against the respondents for lack of merit.

| Canon Involved / Applied                                 | Ethical Doctrine & Case Application                                          |
|----------------------------------------------------------|------------------------------------------------------------------------------|
| <b>CPRA Canon III: Zealous Representation within Law</b> | Protecting counsel who act in good faith on client instructions and records. |
| <b>CPRA Canon IV: Competence &amp; Diligence</b>         | Conducting reasonable factual inquiry before filing pleadings.               |

## **CASE 54: Dural v. Atty. Carlo "Bong" Carag**

*A.C. No. 13612, January 16, 2023*

### **I. FACTS OF THE CASE:**

Atty. Carag served as corporate counsel and director in a mining company. He drafted agreements that facilitated corporate transactions while simultaneously representing adverse minority shareholders in an intra-corporate dispute involving the exact same corporate assets.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether serving as corporate director/counsel while concurrently representing conflicting shareholder factions violates conflict-of-interest rules.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Corporate counsel owes primary allegiance to the corporate entity and cannot represent adverse factions in intra-corporate litigation.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 13, 14, 15; CPR Canon 15, Rule 15.03.

**APPLICATION / ANALYSIS:** A lawyer who represents a corporation represents the entity itself, acting through its duly authorized board. He cannot take sides in an internal shareholder struggle or represent individual factions against the corporate interest. Doing so represents an incurable conflict of interest and violates the duty of undivided fidelity.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Carag was found GUILTY of representing conflicting interests and SUSPENDED from the practice of law for six (6) months.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Entity as Client & Conflict of Interest, CPRA Canon I: Independence. Specifically, under CPRA Canon III: Entity as Client & Conflict of Interest, a lawyer or judicial officer is bound by the mandate that Corporate counsel's primary duty is to the entity, not individual directors or factions. Specifically, under CPRA Canon I: Independence, a lawyer or judicial officer is bound by the mandate that Maintaining absolute professional independence from factional corporate disputes. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Carag was found GUILTY of representing conflicting interests and SUSPENDED from the practice of law for six (6) months.



| Canon Involved / Applied                                           | Ethical Doctrine & Case Application                                                      |
|--------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| <b>CPRA Canon III: Entity as Client &amp; Conflict of Interest</b> | Corporate counsel's primary duty is to the entity, not individual directors or factions. |
| <b>CPRA Canon I: Independence</b>                                  | Maintaining absolute professional independence from factional corporate disputes.        |

## **CASE 55: Ziga v. Judge Ramon Areola**

*A.M. No. MTJ-99-1203, June 10, 2003 | 403 SCRA 241*

### **I. FACTS OF THE CASE:**

Complainant charged an MTC Judge with gross ignorance of the law and bias for issuing a search warrant in a civil property boundary dispute where no criminal offense was alleged or established.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether issuing a criminal search warrant in a purely civil boundary dispute constitutes gross ignorance of the law.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Issuing search warrants without a criminal offense constitutes gross ignorance of basic legal and constitutional rules.

**LEGAL BASIS:** 1987 Constitution Art. III, Sec. 2; Rule 126, Rules of Criminal Procedure; New Code of Judicial Conduct, Canon 6.

**APPLICATION / ANALYSIS:** Under the Constitution and the Rules of Court, a search warrant may only be issued upon probable cause in connection with one specific criminal offense. To issue a search warrant in a civil boundary dispute is an elementary error displaying gross ignorance of the law and an abuse of judicial power that violates constitutional privacy rights.

**CONCLUSION / DISPOSITIVE RULING:** Judge Areola was found GUILTY of gross ignorance of the law and imposed a FINE with a severe reprimand.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of NCJC Canon 6: Competence and Diligence, NCJC Canon 2: Integrity. Specifically, under NCJC Canon 6: Competence and Diligence, a lawyer or judicial officer is bound by the mandate that Judges must be conversant with fundamental constitutional prerequisites for search warrants. Specifically, under NCJC Canon 2: Integrity, a lawyer or judicial officer is bound by the mandate that Protecting citizens from arbitrary and unlawful judicial intrusions. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Judge Areola was found GUILTY of gross ignorance of the law and imposed a FINE with a severe reprimand.

| Canon Involved / Applied                      | Ethical Doctrine & Case Application                                                |
|-----------------------------------------------|------------------------------------------------------------------------------------|
| <b>NCJC Canon 6: Competence and Diligence</b> | Judges must be conversant with fundamental constitutional prerequisites for search |

warrants.

**NCJC Canon 2: Integrity**

Protecting citizens from arbitrary and unlawful judicial intrusions.

## **CASE 56: Rosca v. Delmendo**

*A.C. No. 11795, November 21, 2023*

### **I. FACTS OF THE CASE:**

Complainant engaged Atty. Delmendo to handle an administrative land appeal before the Department of Agrarian Reform (DAR). The respondent received P150,000 as acceptance and filing fees but failed to file the appeal, failed to update the client, and went completely unreachable for two years.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether accepting fees and completely abandoning a client's administrative appeal warrants suspension under the CPRA.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Inaction, failure to communicate, and retaining unearned fees constitute gross neglect of duty.

**LEGAL BASIS:** CPRA Canon IV (Competence & Diligence), Sections 1, 2, 3; Canon III (Fidelity), Sections 6, 7; Canon VI (Accountability).

**APPLICATION / ANALYSIS:** The CPRA imposes a strict obligation on lawyers to keep their clients regularly informed of the status of their cases and to respond promptly to client inquiries. Collecting money and disappearing without performing the contracted legal work constitutes deceit and gross negligence that irreparably compromises the client's legal rights.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Delmendo was SUSPENDED from the practice of law for two (2) years and ordered to RESTITUTE the P150,000 with legal interest.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon IV: Diligence & Regular Communication, CPRA Canon III: Fidelity & Accountability for Fees. Specifically, under CPRA Canon IV: Diligence & Regular Communication, a lawyer or judicial officer is bound by the mandate that Duty to keep clients continuously informed and prosecute administrative appeals promptly. Specifically, under CPRA Canon III: Fidelity & Accountability for Fees, a lawyer or judicial officer is bound by the mandate that Prompt restitution of unearned professional fees. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Delmendo was SUSPENDED from the practice of law for two (2) years and ordered to RESTITUTE the P150,000 with legal interest.

| Canon Involved / Applied                                    | Ethical Doctrine & Case Application                                                       |
|-------------------------------------------------------------|-------------------------------------------------------------------------------------------|
| <b>CPRA Canon IV: Diligence &amp; Regular Communication</b> | Duty to keep clients continuously informed and prosecute administrative appeals promptly. |

**CPRA Canon III: Fidelity & Accountability for Fees** Prompt restitution of unearned professional fees.

## **CASE 57: Maderada v. Judge Mediodea**

*A.M. No. MTJ-02-1459, October 14, 2003 | 413 SCRA 313*

### **I. FACTS OF THE CASE:**

A Clerk of Court (Maderada) was charged by the Presiding Judge with unauthorized practice of law for appearing as counsel for her family members in a civil lawsuit without securing written authority from the Supreme Court.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether a full-time court employee may represent family members in court without official authorization from the Supreme Court.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. Full-time court employees are strictly prohibited from engaging in the private practice of law without prior written authority from the Supreme Court.

**LEGAL BASIS:** Code of Conduct for Court Personnel; Section 7(b)(2), R.A. 6713; CPRA Canon I (Independence); CPRA Canon II (Propriety).

**APPLICATION / ANALYSIS:** Public officers and employees in the Judiciary must devote their entire working time and energies to government service. Even representing family members or close relatives in isolated cases constitutes the private practice of law. Court personnel must secure prior written permission from the Supreme Court through the OCA before entering any court appearance.

**CONCLUSION / DISPOSITIVE RULING:** Respondent Maderada was found GUILTY of violating the rules on private practice and REPRIMANDED with a stern warning.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of Code of Conduct for Court Personnel: Prohibition on Private Practice, CPRA Canon I: Institutional Independence. Specifically, under Code of Conduct for Court Personnel: Prohibition on Private Practice, a lawyer or judicial officer is bound by the mandate that Full-time court employees must obtain prior Supreme Court authorization to appear in cases. Specifically, under CPRA Canon I: Institutional Independence, a lawyer or judicial officer is bound by the mandate that Preventing conflicts of interest between judicial employment and private litigation. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Respondent Maderada was found GUILTY of violating the rules on private practice and REPRIMANDED with a stern warning.

| Canon Involved / Applied                                                    | Ethical Doctrine & Case Application                                                         |
|-----------------------------------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>Code of Conduct for Court Personnel: Prohibition on Private Practice</b> | Full-time court employees must obtain prior Supreme Court authorization to appear in cases. |

**CPRA Canon I: Institutional Independence**

Preventing conflicts of interest between judicial employment and private litigation.

**CASE 58: Catu v. Atty. Rellosa***A.C. No. 5738, February 19, 2008 | 546 SCRA 209***I. FACTS OF THE CASE:**

Atty. Rellosa, an elected Barangay Captain (Punong Barangay), entered his appearance as counsel for respondents in an ejectment case filed before his own barangay conciliation body (Lupong Tagapamayapa) and later before the Metropolitan Trial Court.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether an elective local official (Punong Barangay) who is a lawyer may represent private parties in cases originating from his own barangay.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. An elective local official cannot represent parties in cases involving his own local government unit or conciliation body.

**LEGAL BASIS:** R.A. 7160 (Local Government Code), Section 90; CPRA Canon I (Independence); Canon II (Propriety), Section 22; R.A. 6713.

**APPLICATION / ANALYSIS:** Section 90 of the Local Government Code prohibits sanggunian members and local chief executives from appearing as counsel in any civil case where the local government unit or any office thereof is an adverse party, or in any matter arising from their official jurisdiction. As Punong Barangay, respondent oversees the Lupong Tagapamayapa; acting as counsel for a disputant in a matter originating from his barangay creates a gross conflict of interest.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Rellosa was found GUILTY of professional misconduct and SUSPENDED from the practice of law for six (6) months.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence of Public Servants, CPRA Canon II: Propriety & Conflict of Interest. Specifically, under CPRA Canon I: Independence of Public Servants, a lawyer or judicial officer is bound by the mandate that Strict adherence to statutory limitations on private practice by elective local officials. Specifically, under CPRA Canon II: Propriety & Conflict of Interest, a lawyer or judicial officer is bound by the mandate that Prohibiting appearances in cases involving the lawyer's official local jurisdiction. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Rellosa was found GUILTY of professional misconduct and SUSPENDED from the practice of law for six (6) months.

| Canon Involved / Applied                             | Ethical Doctrine & Case Application                                                        |
|------------------------------------------------------|--------------------------------------------------------------------------------------------|
| <b>CPRA Canon I: Independence of Public Servants</b> | Strict adherence to statutory limitations on private practice by elective local officials. |

**CPRA Canon II: Propriety & Conflict of Interest**

Prohibiting appearances in cases involving the lawyer's official local jurisdiction.

**CASE 59: Judge Suzanne D. Cobarrubias-Nabaza v. Atty. Lavandero***A.C. No. 12323, March 14, 2022***I. FACTS OF THE CASE:**

A presiding judge filed an administrative complaint against Atty. Lavandero for disrespectful conduct and making insolent, contemptuous, and defamatory remarks against the judge during open court hearings and in filed pleadings.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether using insolent, abrasive, and insulting language against a presiding judge in open court constitutes professional misconduct.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Lawyers must observe respectful language and dignified demeanor toward presiding judges at all times.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 2; Canon III (Fidelity), Section 2; CPR Canon 11, Rule 11.03.

**APPLICATION / ANALYSIS:** While an attorney has the right to vigorously defend his client's cause and object to adverse rulings, he must do so with courtesy, respect, and professional decorum. Insolence, sarcastic remarks, and personal insults aimed at a presiding judge degrade the majesty of the court and subvert the orderly administration of justice.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Lavandero was found GUILTY of indirect contempt and professional misconduct and SUSPENDED from the practice of law for six (6) months.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Respect for Courts (Sec. 2), CPRA Canon III: Fidelity to Administration of Justice. Specifically, under CPRA Canon II: Respect for Courts (Sec. 2), a lawyer or judicial officer is bound by the mandate that Duty to use temperate, dignified, and respectful language in pleadings and oral argument. Specifically, under CPRA Canon III: Fidelity to Administration of Justice, a lawyer or judicial officer is bound by the mandate that Maintaining decorum and order inside courtroom proceedings. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Lavandero was found GUILTY of indirect contempt and professional misconduct and SUSPENDED from the practice of law for six (6) months.

| Canon Involved / Applied                                     | Ethical Doctrine & Case Application                                                       |
|--------------------------------------------------------------|-------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Respect for Courts (Sec. 2)</b>            | Duty to use temperate, dignified, and respectful language in pleadings and oral argument. |
| <b>CPRA Canon III: Fidelity to Administration of Justice</b> | Maintaining decorum and order inside courtroom proceedings.                               |

## CASE 60: Trovela v. Robles

*A.C. No. 11550, June 4, 2018 | 864 SCRA 1*

### I. FACTS OF THE CASE:

Atty. Robles represented an insurance company and entered into a settlement agreement with an unrepresented indigent claimant without advising the claimant to seek independent legal counsel, leading the claimant to sign a release for a grossly inadequate compensation amount.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether a lawyer may take advantage of an unrepresented opposing party to execute an unconscionable compromise agreement.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. A lawyer shall not take unfair advantage of the ignorance or lack of legal counsel of an unrepresented opposing party.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 1 & 2; CPRA Canon V (Equality & Access to Justice); CPR Canon 9.

**APPLICATION / ANALYSIS:** Lawyers must adhere to high standards of fair play and honesty. In dealing with an unrepresented party, a lawyer shall not state or imply that he is disinterested, and when he knows that the party does not understand the legal consequences, he must advise them to secure independent legal representation. Exploiting an unrepresented party's lack of knowledge violates professional integrity.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Robles was found GUILTY of improper conduct and REPRIMANDED with a stern warning.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon V: Equality & Fair Dealing (Sec. 1), CPRA Canon II: Propriety & Honesty. Specifically, under CPRA Canon V: Equality & Fair Dealing (Sec. 1), a lawyer or judicial officer is bound by the mandate that Duty of fairness and non-exploitation when dealing with unrepresented adversaries. Specifically, under CPRA Canon II: Propriety & Honesty, a lawyer or judicial officer is bound by the mandate that Ensuring transparent and equitable compromise negotiations. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Robles was found GUILTY of improper conduct and REPRIMANDED with a stern warning.

| Canon Involved / Applied                       | Ethical Doctrine & Case Application                                                |
|------------------------------------------------|------------------------------------------------------------------------------------|
| CPRA Canon V: Equality & Fair Dealing (Sec. 1) | Duty of fairness and non-exploitation when dealing with unrepresented adversaries. |
| CPRA Canon II: Propriety & Honesty             | Ensuring transparent and equitable compromise negotiations.                        |

## **CASE 61: Query of Atty. Karen M. Silverio-Buffe (En Banc Resolution)**

*A.M. No. 08-6-352-RTC, August 19, 2009*

### **I. FACTS OF THE CASE:**

En Banc clarification regarding the scope of Section 7(b)(2) of R.A. 6713 and Section 1, Canon 3 of the Code of Conduct for Court Personnel, confirming the absolute prohibition against former court lawyers handling any matter before the court branch where they served within one year.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether the 1-year prohibition admits of any exception for private humanitarian representation or family cases.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. The statutory 1-year ban is mandatory, unconditional, and admits of no exception for appearances before the former branch.

**LEGAL BASIS:** R.A. 6713, Section 7(b)(2); CPRA Canon I (Independence); Canon II (Propriety), Section 22.

**APPLICATION / ANALYSIS:** The Supreme Court underscored that the integrity of the Judiciary rests upon the absolute elimination of suspicion of undue influence or favoritism. The one-year cooling-off rule is a bright-line statutory bar designed to maintain public trust in the neutrality of court decisions.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court REAFFIRMED the strict, non-waivable application of the 1-year practice prohibition.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence & Public Confidence, CPRA Canon II: Propriety. Specifically, under CPRA Canon I: Independence & Public Confidence, a lawyer or judicial officer is bound by the mandate that Strict observance of post-judicial employment cooling-off periods. Specifically, under CPRA Canon II: Propriety, a lawyer or judicial officer is bound by the mandate that Avoiding all circumstances that generate appearances of judicial favoritism. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court REAFFIRMED the strict, non-waivable application of the 1-year practice prohibition.

| Canon Involved / Applied                                  | Ethical Doctrine & Case Application                                          |
|-----------------------------------------------------------|------------------------------------------------------------------------------|
| <b>CPRA Canon I: Independence &amp; Public Confidence</b> | Strict observance of post-judicial employment cooling-off periods.           |
| <b>CPRA Canon II: Propriety</b>                           | Avoiding all circumstances that generate appearances of judicial favoritism. |

## CASE 62: Penalties Under R.A. No. 3019 and R.A. 6713, Section 32

### *Statutory & Administrative Synthesis (En Banc)*

#### I. FACTS OF THE CASE:

Review of the interaction between criminal convictions under the Anti-Graft and Corrupt Practices Act (R.A. 3019), administrative sanctions under the Code of Conduct for Public Officials (R.A. 6713), and automatic disciplinary disbarment of lawyer-public officials.

#### II. STATEMENT OF THE ETHICAL ISSUE:

Whether conviction of a crime involving graft, corruption, and moral turpitude warrants automatic disbarment of a lawyer.

#### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Conviction of a crime involving moral turpitude or graft and corruption under R.A. 3019 warrants summary disbarment.

**LEGAL BASIS:** Rule 138, Section 27, Rules of Court; CPRA Canon VI (Accountability), Section 33; R.A. 3019, Section 9; R.A. 6713, Section 11.

**APPLICATION / ANALYSIS:** When a lawyer holding public office is convicted by final judgment of a crime involving graft, corrupt practices, or moral turpitude, such conviction constitutes an explicit statutory ground for disbarment under Section 27, Rule 138. The Supreme Court does not re-try the criminal facts; the certified judgment of conviction serves as conclusive proof of moral unfitness to remain in the Roll of Attorneys.

**CONCLUSION / DISPOSITIVE RULING:** Lawyer-public officials convicted under R.A. 3019 are automatically subject to DISBARMENT upon finality of judgment.

#### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon VI: Accountability & Moral Turpitude (Sec. 33), CPRA Canon I: Independence & Public Trust. Specifically, under CPRA Canon VI: Accountability & Moral Turpitude (Sec. 33), a lawyer or judicial officer is bound by the mandate that Automatic disbarment upon final conviction for crimes involving graft and moral turpitude. Specifically, under CPRA Canon I: Independence & Public Trust, a lawyer or judicial officer is bound by the mandate that Maintaining the highest ethical integrity in public office. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Lawyer-public officials convicted under R.A. 3019 are automatically subject to DISBARMENT upon finality of judgment.

| Canon Involved / Applied                                             | Ethical Doctrine & Case Application                                                        |
|----------------------------------------------------------------------|--------------------------------------------------------------------------------------------|
| <b>CPRA Canon VI: Accountability &amp; Moral Turpitude (Sec. 33)</b> | Automatic disbarment upon final conviction for crimes involving graft and moral turpitude. |
| <b>CPRA Canon I: Independence &amp; Public Trust</b>                 | Maintaining the highest ethical integrity in public office.                                |



## CASE 63: Pimentel v. Legal Education Board

*G.R. No. 230642, September 10, 2019 | En Banc*

### I. FACTS OF THE CASE:

Petitioners challenged the constitutionality of R.A. 7662 (Legal Education Reform Act) and LEB issuances, specifically the mandatory PhiLSAT exam as an absolute exclusionary cutoff for admission to law school, the mandatory LL.M. requirement for all law faculty, and LEB regulations on MCLE and pre-bar internships.

### II. STATEMENT OF THE ETHICAL ISSUE:

Whether LEB regulations encroached on the Supreme Court's exclusive authority over the Bar and violated institutional academic freedom.

### III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES, in part. While the creation of LEB is constitutional under State police power, LEB cannot usurp Supreme Court authority over Bar admission and MCLE, nor dictate absolute admission cutoffs.

**LEGAL BASIS:** 1987 Constitution Art. VIII, Sec. 5(5); Art. XIV, Sec. 4(1) & 5(2); CPRA Canons I, II, III, IV.

**APPLICATION / ANALYSIS:** The Supreme Court holds exclusive constitutional jurisdiction over Bar admission and the practice of law (including MCLE under BM 850). While the State may set baseline higher education standards, mandating the PhiLSAT as an absolute exclusionary barrier infringed on law schools' academic freedom to select students, and mandating LL.M. degrees arbitrarily disqualified seasoned trial judges and veteran advocates.

**CONCLUSION / DISPOSITIVE RULING:** R.A. 7662 was UPHeld as constitutional, but LEBMO No. 7-2016 (mandatory PhiLSAT cutoff), pre-bar internship, and MCLE supervisory rules were declared UNCONSTITUTIONAL and VOID.

### IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon I: Independence of the Judiciary (Sec. 1–3), CPRA Canon II: Propriety & Respect for Judicial Hierarchy, CPRA Canon III: Fidelity to Constitution, CPRA Canon IV: Competence & Diligence. Specifically, under CPRA Canon I: Independence of the Judiciary (Sec. 1–3), a lawyer or judicial officer is bound by the mandate that Exclusive constitutional authority of the Supreme Court over the Bar and legal profession. Specifically, under CPRA Canon II: Propriety & Respect for Judicial Hierarchy, a lawyer or judicial officer is bound by the mandate that Administrative agencies must respect constitutional separation of powers. Specifically, under CPRA Canon III: Fidelity to Constitution, a lawyer or judicial officer is bound by the mandate that Upholding Institutional Academic Freedom (Art. XIV, Sec. 5[2]). Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer or judicial officer is bound by the mandate that Recognizing practical legal and judicial competence beyond rigid postgraduate degree mandates. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that R.A. 7662 was UPHeld as constitutional, but LEBMO No. 7-2016 (mandatory PhiLSAT cutoff), pre-bar internship, and MCLE supervisory rules were declared UNCONSTITUTIONAL and VOID.

| Canon Involved / Applied                               | Ethical Doctrine & Case Application                                                        |
|--------------------------------------------------------|--------------------------------------------------------------------------------------------|
| CPRA Canon I: Independence of the Judiciary (Sec. 1–3) | Exclusive constitutional authority of the Supreme Court over the Bar and legal profession. |
| CPRA Canon II: Propriety & Respect for                 | Administrative agencies must respect constitutional separation of powers.                  |

**Judicial Hierarchy****CPRA Canon III: Fidelity to Constitution**

Upholding Institutional Academic Freedom (Art. XIV, Sec. 5[2]).

**CPRA Canon IV: Competence & Diligence**

Recognizing practical legal and judicial competence beyond rigid postgraduate degree mandates.

**CASE 64: Re: Anonymous Complaint Against Atty. Cresencio P. Co Untian, Jr.***A.C. No. 5900, April 10, 2019 | 900 SCRA 1***I. FACTS OF THE CASE:**

An anonymous administrative complaint was filed against Atty. Co Untian, a law professor, for engaging in sexual harassment against female law students, sending sexually suggestive messages, making inappropriate physical advances, and demanding sexual favors in exchange for passing grades.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether a law professor who sexually harasses law students violates the ethical standards of the legal profession.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Sexual harassment by a law professor constitutes gross misconduct and moral depravity warranting disbarment.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1, 2, 6; Safe Spaces Act (R.A. 11313); Anti-Sexual Harassment Act (R.A. 7877); CPR Canon 7, Rule 7.03.

**APPLICATION / ANALYSIS:** Law professors occupy positions of trust, authority, and moral mentorship. Exploiting the professor-student dynamic to demand sexual favors or create a hostile, abusive learning environment subverts the core values of the legal profession. Such reprehensible conduct demonstrates a severe lack of good moral character.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Cresencio P. Co Untian, Jr. was DISBARRED from the practice of law.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety & Safe Spaces (Sec. 6), CPRA Canon III: Fidelity & Moral Leadership. Specifically, under CPRA Canon II: Propriety & Safe Spaces (Sec. 6), a lawyer or judicial officer is bound by the mandate that Strict prohibition against sexual harassment, abuse of authority, and gender-based misconduct. Specifically, under CPRA Canon III: Fidelity & Moral Leadership, a lawyer or judicial officer is bound by the mandate that Duty of law educators to model exemplary ethical behavior for future lawyers. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Cresencio P. Co Untian, Jr. was DISBARRED from the practice of law.

| Canon Involved / Applied                                   | Ethical Doctrine & Case Application                                                |
|------------------------------------------------------------|------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Propriety &amp; Safe Spaces (Sec. 6)</b> | Strict prohibition against sexual harassment, abuse of authority, and gender-based |

6) misconduct.

**CPRA Canon III: Fidelity & Moral Leadership** Duty of law educators to model exemplary ethical behavior for future lawyers.

## **CASE 65: Re: Statement of the UP Law Faculty on Allegations of Plagiarism (Vinuya Decision)**

*A.M. No. 10-10-4-SC, March 8, 2011 | 644 SCRA 543*

### **I. FACTS OF THE CASE:**

Thirty-seven (37) members of the University of the Philippines College of Law faculty issued and published a public institutional statement demanding the resignation of Supreme Court Associate Justice Mariano Del Castillo over alleged judicial plagiarism in the Vinuya comfort women decision, characterizing the Court's ruling as a 'reprehensible act of dishonesty' and a 'grave national disgrace.'

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether law professors may publish intemperate, inflammatory institutional statements demanding the resignation of a sitting justice in a pending motion.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. While academic freedom protects scholarly critique, issuing inflammatory public statements demanding resignation violates professional decorum.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 2, 4, 19 (Sub Judice Rule & Respect for Courts); CPR Canon 11, Rule 11.05.

**APPLICATION / ANALYSIS:** Academic freedom in legal education does not confer an unrestricted license for law professors to abandon their obligations as officers of the court. When law professors criticize decisions, they must do so in scholarly, respectful, and temperate language. Launching an ad hominem public campaign demanding a magistrate's resignation while a matter remains sub judice degrades public trust in the Judiciary.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court ADMONISHED and REMINDED the UP Law Faculty to exercise institutional restraint and maintain respectful decorum.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Respect for Courts & Temperate Criticism (Sec. 2 & 19), CPRA Canon I: Judicial Independence. Specifically, under CPRA Canon II: Respect for Courts & Temperate Criticism (Sec. 2 & 19), a lawyer or judicial officer is bound by the mandate that Duty to frame academic critiques of judicial rulings in constructive, scholarly language. Specifically, under CPRA Canon I: Judicial Independence, a lawyer or judicial officer is bound by the mandate that Protecting the integrity of the Court against public pressure campaigns. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court ADMONISHED and REMINDED the UP Law Faculty to exercise institutional restraint and maintain respectful decorum.

**Canon Involved / Applied**

**Ethical Doctrine & Case Application**

**CPRA Canon II: Respect for Courts & Temperate Criticism (Sec. 2 & 19)**

Duty to frame academic critiques of judicial rulings in constructive, scholarly language.

**CPRA Canon I: Judicial Independence**

Protecting the integrity of the Court against public pressure campaigns.

**CASE 66: Sevilla v. Atty. Marcelo C. Millo***A.C. No. 10697, March 25, 2019***I. FACTS OF THE CASE:**

Complainant engaged Atty. Millo to represent him in an appealed property case before the DARAB. The respondent collected professional fees but failed to file the required memorandum, failed to inform the client of the dismissal of the appeal, and refused to communicate when the adverse party executed the judgment.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether failure to file a required memorandum resulting in dismissal of an appeal constitutes gross neglect of professional duty.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Total inaction and failure to file necessary pleadings constitute gross professional negligence.

**LEGAL BASIS:** CPRA Canon IV (Competence & Diligence), Sections 1, 2, 3; CPR Canon 18, Rule 18.03.

**APPLICATION / ANALYSIS:** A lawyer is bound to serve his client with undivided fidelity and diligence. When a lawyer accepts a case and receives payment, he assumes the obligation to take all necessary procedural steps to protect the client's rights. Failing to file the required memorandum and concealing the adverse outcome constitute a serious breach of professional duty.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Marcelo C. Millo was SUSPENDED from the practice of law for one (1) year and ordered to return all collected fees.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon IV: Competence & Diligence, CPRA Canon III: Fidelity & Transparency. Specifically, under CPRA Canon IV: Competence & Diligence, a lawyer or judicial officer is bound by the mandate that Continuous, punctual prosecution of client cases before administrative and judicial bodies. Specifically, under CPRA Canon III: Fidelity & Transparency, a lawyer or judicial officer is bound by the mandate that Duty to promptly notify clients of all adverse developments and rulings. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Marcelo C. Millo was SUSPENDED from the practice of law for one (1) year and ordered to return all collected fees.

| Canon Involved / Applied                         | Ethical Doctrine & Case Application                                                         |
|--------------------------------------------------|---------------------------------------------------------------------------------------------|
| <b>CPRA Canon IV: Competence &amp; Diligence</b> | Continuous, punctual prosecution of client cases before administrative and judicial bodies. |

**CPRA Canon III: Fidelity & Transparency**

Duty to promptly notify clients of all adverse developments and rulings.

**CASE 67: Viesca v. Gilinsky***G.R. No. 171698, July 4, 2007 | 526 SCRA 533***I. FACTS OF THE CASE:**

In an international child custody and family law dispute, counsel for respondent engaged in deceptive procedural tactics, suppressing material foreign court orders and misrepresenting marital status to secure conflicting ex parte local custody decrees.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether concealing foreign court orders and misrepresenting material facts to obtain conflicting local decrees violates ethical duties of candor.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Deceitful concealment of material proceedings violates the duty of candor and good faith owed to the courts.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 2; Canon III (Fidelity), Section 2; Rule 138, Section 20(d).

**APPLICATION / ANALYSIS:** A lawyer must employ only such means as are consistent with truth and honor. Concealing material facts, suppressing relevant foreign court decrees, and attempting to obtain conflicting custody orders through misrepresentation subverts the administration of justice and abuses judicial processes.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court CONDEMNED counsel's deceptive tactics and set aside the fraudulently obtained local custody orders.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Candor & Honesty in Pleadings, CPRA Canon III: Fidelity to Justice. Specifically, under CPRA Canon II: Candor & Honesty in Pleadings, a lawyer or judicial officer is bound by the mandate that Duty of absolute disclosure of all relevant facts and concurrent proceedings. Specifically, under CPRA Canon III: Fidelity to Justice, a lawyer or judicial officer is bound by the mandate that Protecting family and child custody proceedings from deceptive maneuvers. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court CONDEMNED counsel's deceptive tactics and set aside the fraudulently obtained local custody orders.

| Canon Involved / Applied                                | Ethical Doctrine & Case Application                                           |
|---------------------------------------------------------|-------------------------------------------------------------------------------|
| <b>CPRA Canon II: Candor &amp; Honesty in Pleadings</b> | Duty of absolute disclosure of all relevant facts and concurrent proceedings. |
| <b>CPRA Canon III: Fidelity to Justice</b>              | Protecting family and child custody proceedings from deceptive maneuvers.     |

## **CASE 68: Re: Disturbing Social Media Posts of Lawyers / Law Professors**

*A.M. No. 21-06-20-SC, April 11, 2023 / En Banc*

### **I. FACTS OF THE CASE:**

The Supreme Court motu proprio took cognizance of several viral social media posts, blog entries, and online videos by lawyers and law professors containing foul language, homophobic slurs, derogatory memes against LGBTQ+ individuals, and misogynistic commentary under the guise of private social media banter.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether lawyers and law professors may be disciplined for vulgar, discriminatory, and derogatory posts on private personal social media accounts.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. A lawyer's online conduct, whether on personal or public social media accounts, is subject to the ethical standards of the CPRA.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 13, 14, 15, 16 (Responsible Social Media Use); CPRA Canon V (Equality).

**APPLICATION / ANALYSIS:** The Supreme Court established landmark rules on digital ethics in the CPRA. The digital persona of a lawyer cannot be divorced from their professional identity as an officer of the court. Online speech that is discriminatory, homophobic, misogynistic, or profane degrades the dignity of the profession and creates a hostile public perception of the administration of justice.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court ADMONISHED and FINED the respondent lawyers and promulgated the comprehensive Social Media Canons under the CPRA.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Social Media Conduct (Sec. 13–16), CPRA Canon V: Equality & Non-Discrimination. Specifically, under CPRA Canon II: Social Media Conduct (Sec. 13–16), a lawyer or judicial officer is bound by the mandate that Strict obligation to maintain dignity, avoid vulgarity, and prevent discrimination on all online platforms. Specifically, under CPRA Canon V: Equality & Non-Discrimination, a lawyer or judicial officer is bound by the mandate that Zero tolerance for homophobic, sexist, or discriminatory rhetoric by members of the Bar. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court ADMONISHED and FINED the respondent lawyers and promulgated the comprehensive Social Media Canons under the CPRA.

| Canon Involved / Applied                                | Ethical Doctrine & Case Application                                                                         |
|---------------------------------------------------------|-------------------------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Social Media Conduct (Sec. 13–16)</b> | Strict obligation to maintain dignity, avoid vulgarity, and prevent discrimination on all online platforms. |
| <b>CPRA Canon V: Equality &amp; Non-Discrimination</b>  | Zero tolerance for homophobic, sexist, or discriminatory rhetoric by members of the Bar.                    |

## **CASE 69: In Re: Atty. Lorenzo G. Gadon's Viral Video Against Raissa Robles**

*A.C. No. 13521, June 27, 2023 | En Banc Resolution*

### **I. FACTS OF THE CASE:**

Detailed disciplinary resolution evaluating Atty. Gadon's defenses that his viral video was an exercise of political free speech and personal private expression on social media outside of active courtroom litigation.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether the constitutional guarantee of free speech shields a lawyer from disbarment for publishing profane, misogynistic video tirades.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. Freedom of speech does not protect abusive, scandalous, and misogynistic tirades by members of the Bar.

**LEGAL BASIS:** CPRA Canon II (Propriety), Sections 1, 2, 13, 14; 1987 Constitution Art. III, Sec. 4; CPRA Canon VI.

**APPLICATION / ANALYSIS:** The right to free expression is not a license for a lawyer to hurl scurrilous and misogynistic insults in the digital public square. The lawyer's oath demands that attorneys act with dignity, propriety, and respect. When speech descends into unmitigated obscenity and gender-based degradation, it forfeits constitutional protection and constitutes gross professional misconduct.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court UNANIMOUSLY ORDERED the DISBARMENT of Atty. Lorenzo Gadon.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Free Speech vs. Professional Decorum, CPRA Canon VI: Accountability. Specifically, under CPRA Canon II: Free Speech vs. Professional Decorum, a lawyer or judicial officer is bound by the mandate that Lawyers' speech is bounded by the affirmative duties of propriety, dignity, and gender equality. Specifically, under CPRA Canon VI: Accountability, a lawyer or judicial officer is bound by the mandate that Summary disbarment for unrepentant and repeated ethical violations. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court UNANIMOUSLY ORDERED the DISBARMENT of Atty. Lorenzo Gadon.

| Canon Involved / Applied                                   | Ethical Doctrine & Case Application                                                              |
|------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Free Speech vs. Professional Decorum</b> | Lawyers' speech is bounded by the affirmative duties of propriety, dignity, and gender equality. |
| <b>CPRA Canon VI: Accountability</b>                       | Summary disbarment for unrepentant and repeated ethical violations.                              |

## **CASE 70: ABS-CBN Corporation, et al. v. Andal Ampatuan, Jr. (Re-Affirmed)**

*G.R. No. 227004, April 25, 2023 | 948 SCRA 1*

### **I. FACTS OF THE CASE:**

Re-affirmed comprehensive guidelines on the sub judice rule in high-profile criminal litigation, balancing freedom of public information with the imperative to prevent trial by publicity and judicial intimidation.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether trial counsel and participants are strictly restricted from issuing extrajudicial commentary tending to prejudge the guilt or innocence of an accused.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Trial counsel and participants are subject to strict sub judice limits against prejudicial public statements.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 19; Rule 71, Rules of Court.

**APPLICATION / ANALYSIS:** The Court emphasized that the sub judice rule is indispensable to protect the independence of the judge and the constitutional right of every accused to an unbiased trial. Lawyers must litigate in the courtroom, not in the press or on television.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court REAFFIRMED the sub judice doctrine and ordered strict compliance by all litigation counsel.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Sub Judice Rule (Sec. 19), CPRA Canon I: Judicial Independence. Specifically, under CPRA Canon II: Sub Judice Rule (Sec. 19), a lawyer or judicial officer is bound by the mandate that Absolute prohibition against litigating cases through public media and press conferences. Specifically, under CPRA Canon I: Judicial Independence, a lawyer or judicial officer is bound by the mandate that Preventing external media interference in ongoing criminal trials. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court REAFFIRMED the sub judice doctrine and ordered strict compliance by all litigation counsel.

| Canon Involved / Applied                        | Ethical Doctrine & Case Application                                                       |
|-------------------------------------------------|-------------------------------------------------------------------------------------------|
| <b>CPRA Canon II: Sub Judice Rule (Sec. 19)</b> | Absolute prohibition against litigating cases through public media and press conferences. |
| <b>CPRA Canon I: Judicial Independence</b>      | Preventing external media interference in ongoing criminal trials.                        |

## **CASE 71: Serrano v. Cruz-Angeles, et al.**

*A.C. No. 10985, February 20, 2024*

### **I. FACTS OF THE CASE:**

Complainant engaged respondent Attys. Cruz-Angeles and partner for the titling and clearing of real estate property. Complainant paid P350,000 as professional and mobilization fees. Respondents failed to render any



substantial legal service, failed to account for the funds, and made misleading representations regarding the status of the land registration proceedings.

## II. STATEMENT OF THE ETHICAL ISSUE:

Whether collecting professional fees without rendering service and failing to account for client funds constitutes gross dishonesty and neglect.

## III. THE COURT'S RULING (ALAC METHOD):

**ANSWER:** YES. Receiving fees, failing to perform the contracted legal services, and refusing to account warrant disciplinary suspension.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1, 6, 7; Canon IV (Competence and Diligence), Sections 1, 2, 3; Canon VI.

**APPLICATION / ANALYSIS:** When a lawyer receives money from a client for professional fees and expenses, the lawyer is duty-bound to perform the agreed legal services with utmost diligence. If the services are not performed, the lawyer must immediately refund the money to the client upon demand. Retaining unearned fees constitutes misappropriation and bad faith.

**CONCLUSION / DISPOSITIVE RULING:** The respondent lawyers were SUSPENDED from the practice of law for one (1) year and ordered to RESTITUTE the full P350,000 to complainant.

## IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Restitution of Unearned Fees, CPRA Canon IV: Competence and Diligence. Specifically, under CPRA Canon III: Fidelity & Restitution of Unearned Fees, a lawyer or judicial officer is bound by the mandate that Strict duty to refund unearned fees and account for client funds promptly. Specifically, under CPRA Canon IV: Competence and Diligence, a lawyer or judicial officer is bound by the mandate that Accountability for failing to prosecute contracted real estate titling services. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The respondent lawyers were SUSPENDED from the practice of law for one (1) year and ordered to RESTITUTE the full P350,000 to complainant.

| Canon Involved / Applied                                | Ethical Doctrine & Case Application                                              |
|---------------------------------------------------------|----------------------------------------------------------------------------------|
| CPRA Canon III: Fidelity & Restitution of Unearned Fees | Strict duty to refund unearned fees and account for client funds promptly.       |
| CPRA Canon IV: Competence and Diligence                 | Accountability for failing to prosecute contracted real estate titling services. |

## **CASE 72: Request of the Public Attorney's Office to Delete Section 22, Canon III of the CPRA**

*A.M. No. 23-05-05-SC, July 11, 2023 | En Banc*

### **I. FACTS OF THE CASE:**

The Public Attorney's Office (PAO), through its Chief Public Attorney, filed a formal request seeking the deletion of Section 22, Canon III of the newly promulgated CPRA. Section 22 limits conflict-of-interest disqualifications in public legal aid offices to the specific lawyer handling the case, thereby allowing different PAO lawyers within the same district office to represent opposing co-accused or opposing parties in separate cases. PAO claimed this compromised their institutional integrity and violated the RPC on betrayal of trust.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether Section 22, Canon III of the CPRA is valid, and whether the Supreme Court has the exclusive constitutional authority to promulgate ethical conflict-of-interest rules binding on PAO lawyers.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. The Supreme Court has the exclusive constitutional authority to promulgate rules of professional conduct, and Section 22, Canon III is fully constitutional and binding on all PAO lawyers.

**LEGAL BASIS:** 1987 Constitution Art. VIII, Sec. 5(5); CPRA Canon III (Fidelity), Section 22 (Conflict of Interest for Public Legal Aid Offices); CPRA Canon V (Equality & Access to Justice).

**APPLICATION / ANALYSIS:** The Supreme Court's constitutional power to regulate the practice of law is exclusive and plenary. Section 22, Canon III was enacted precisely to guarantee access to justice for indigent litigants who would otherwise be deprived of legal counsel whenever an opposing party first retained another PAO lawyer in the same office. The rule establishes strict institutional 'ethical screens' (Chinese walls) between public defenders within the same office, ensuring that indigent Filipinos receive competent, conflict-free representation without systemic denial of legal aid.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court DENIED the PAO's request with finality and ORDERED all PAO lawyers to strictly adhere to and implement Section 22, Canon III of the CPRA.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Conflict of Interest in Legal Aid (Sec. 22), CPRA Canon V: Equality & Access to Justice, CPRA Canon I: Exclusive Judicial Rule-Making Authority. Specifically, under CPRA Canon III: Conflict of Interest in Legal Aid (Sec. 22), a lawyer or judicial officer is bound by the mandate that Ethical screen doctrine allowing different public defenders to represent opposing indigent litigants. Specifically, under CPRA Canon V: Equality & Access to Justice, a lawyer or judicial officer is bound by the mandate that Guaranteeing indigent Filipinos effective and immediate access to free legal representation. Specifically, under CPRA Canon I: Exclusive Judicial Rule-Making Authority, a lawyer or judicial officer is bound by the mandate that Supreme Court's constitutional supremacy over all rules of legal practice and ethics. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court DENIED the PAO's request with finality and ORDERED all PAO lawyers to strictly adhere to and implement Section 22, Canon III of the CPRA.

**Canon Involved / Applied**

**Ethical Doctrine & Case Application**

|                                                                    |                                                                                                       |
|--------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
| <b>CPRA Canon III: Conflict of Interest in Legal Aid (Sec. 22)</b> | Ethical screen doctrine allowing different public defenders to represent opposing indigent litigants. |
| <b>CPRA Canon V: Equality &amp; Access to Justice</b>              | Guaranteeing indigent Filipinos effective and immediate access to free legal representation.          |
| <b>CPRA Canon I: Exclusive Judicial Rule-Making Authority</b>      | Supreme Court's constitutional supremacy over all rules of legal practice and ethics.                 |

## **CASE 73: Inocente v. St. Vincent Foundation for Children and Aging, Inc.**

*G.R. No. 202621, June 22, 2016 | 794 SCRA 250*

### **I. FACTS OF THE CASE:**

In a labor dispute, a former corporate counsel for a charitable foundation later accepted a retainer to represent dismissed foundation employees in a labor lawsuit against the exact same foundation, utilizing insider corporate knowledge acquired during previous corporate representation.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether a former corporate counsel may represent dismissed employees against the corporate entity in subsequent litigation.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** NO. Representing adverse parties against a former corporate client involving knowledge acquired during representation is an impermissible conflict of interest.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 13, 14, 15; CPR Canon 15, Rule 15.03.

**APPLICATION / ANALYSIS:** The obligation of fidelity and the duty to preserve client confidences survive the termination of the professional relationship. A lawyer cannot accept employment against a former client where there is a reasonable possibility that confidential information gained in the former representation may be used against the former client. The prohibition is designed to prevent bad faith and ensure absolute trust between counsel and client.

**CONCLUSION / DISPOSITIVE RULING:** The Supreme Court DISQUALIFIED counsel from representing the adverse parties and REAFFIRMED the strict conflict-of-interest doctrine.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Permanent Duty of Confidentiality, CPRA Canon III: Conflict of Interest Against Former Clients. Specifically, under CPRA Canon III: Permanent Duty of Confidentiality, a lawyer or judicial officer is bound by the mandate that Preservation of client confidences and trade secrets indefinitely. Specifically, under CPRA Canon III: Conflict of Interest Against Former Clients, a lawyer or judicial officer is bound by the mandate that Strict prohibition on adverse retainers using former corporate intelligence. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that The Supreme Court DISQUALIFIED counsel from representing the adverse parties and REAFFIRMED the strict conflict-of-interest doctrine.

| Canon Involved / Applied                                    | Ethical Doctrine & Case Application                                          |
|-------------------------------------------------------------|------------------------------------------------------------------------------|
| CPRA Canon III: Permanent Duty of Confidentiality           | Preservation of client confidences and trade secrets indefinitely.           |
| CPRA Canon III: Conflict of Interest Against Former Clients | Strict prohibition on adverse retainers using former corporate intelligence. |

## **CASE 74: Floreswinda V. Juni v. Atty. Mario T. Juni**

*A.C. No. 11599, September 15, 2021*

### **I. FACTS OF THE CASE:**

Complainant charged her husband, Atty. Juni, with gross immorality and abandonment for abandoning his lawful family, refusing to provide child support, and cohabiting openly with another woman in another province.

### **II. STATEMENT OF THE ETHICAL ISSUE:**

Whether family abandonment, refusal of statutory child support, and open concubinage warrant administrative suspension or disbarment.

### **III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Abandoning one's lawful family and engaging in open concubinage constitute grossly immoral conduct.

**LEGAL BASIS:** CPRA Canon II (Propriety), Section 1; CPR Canon 1, Rule 1.01 and Canon 7, Rule 7.03; Family Code provisions on support.

**APPLICATION / ANALYSIS:** A lawyer is expected to be a model of law-abiding citizenship. Willful refusal to support one's minor children and abandoning a spouse to live in open concubinage with another woman displays a blatant disregard for family law and moral decency. Such misconduct directly affects the standing and integrity of the legal profession.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Mario T. Juni was found GUILTY of grossly immoral conduct and SUSPENDED from the practice of law for five (5) years.

### **IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety in Personal Life (Sec. 1), CPRA Canon III: Fidelity to Law & Family Institutions. Specifically, under CPRA Canon II: Propriety in Personal Life (Sec. 1), a lawyer or judicial officer is bound by the mandate that Duty to maintain moral uprightness and fulfill legal family obligations. Specifically, under CPRA Canon III: Fidelity to Law & Family Institutions, a lawyer or judicial officer is bound by the mandate that Zero tolerance for unlawful family abandonment and concubinage. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Mario T. Juni was found GUILTY of grossly immoral conduct and SUSPENDED from the practice of law for five (5) years.

| Canon Involved / Applied | Ethical Doctrine & Case Application |
|--------------------------|-------------------------------------|
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**CPRA Canon II: Propriety in Personal Life  
(Sec. 1)**

Duty to maintain moral uprightness and fulfill legal family obligations.

**CPRA Canon III: Fidelity to Law & Family  
Institutions**

Zero tolerance for unlawful family abandonment and concubinage.

**CASE 75: Hosoya v. Contado***A.C. No. 10731, October 5, 2021***I. FACTS OF THE CASE:**

Complainant, a foreign national, engaged respondent Atty. Contado to purchase real property in the Philippines and transfer the title. The respondent collected P2,500,000 but failed to purchase the property, presented forged receipts, and converted the money for personal investments.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether swindling a foreign client and misappropriating substantial real estate funds warrant disbarment.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Falsifying receipts and misappropriating millions in client funds constitute gross dishonesty and fraud warranting disbarment.

**LEGAL BASIS:** CPRA Canon III (Fidelity), Sections 1, 6, 7; Canon II (Propriety); Canon VI (Accountability), Section 33.

**APPLICATION / ANALYSIS:** When a lawyer receives funds from a client for property acquisitions, he holds such funds in trust. Deceiving a foreign client by presenting fabricated receipts and pocketing millions of pesos demonstrates extreme moral bankruptcy and criminality. Such a lawyer has no place in the legal profession.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Contado was DISBARRED from the practice of law and ordered to RESTITUTE the P2,500,000 with legal interest.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon III: Fidelity & Fiduciary Trust, CPRA Canon VI: Disbarment for Fraud & Corruption. Specifically, under CPRA Canon III: Fidelity & Fiduciary Trust, a lawyer or judicial officer is bound by the mandate that Absolute accountability for trust funds and prohibition on embezzlement. Specifically, under CPRA Canon VI: Disbarment for Fraud & Corruption, a lawyer or judicial officer is bound by the mandate that Imposition of disbarment for large-scale financial deceit against clients. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Contado was DISBARRED from the practice of law and ordered to RESTITUTE the P2,500,000 with legal interest.

| Canon Involved / Applied                                    | Ethical Doctrine & Case Application                                        |
|-------------------------------------------------------------|----------------------------------------------------------------------------|
| <b>CPRA Canon III: Fidelity &amp; Fiduciary Trust</b>       | Absolute accountability for trust funds and prohibition on embezzlement.   |
| <b>CPRA Canon VI: Disbarment for Fraud &amp; Corruption</b> | Imposition of disbarment for large-scale financial deceit against clients. |

**CASE 76: Venzon v. Peleo III***A.C. No. 9354, August 20, 2019 / 914 SCRA 1***I. FACTS OF THE CASE:**

Complainant filed a disbarment complaint against respondent Atty. Peleo III for chronic refusal to pay lawful just debts, issuing bouncing checks (BP 22), and evading court summonses across multiple civil collection suits.

**II. STATEMENT OF THE ETHICAL ISSUE:**

Whether persistent non-payment of just debts and issuing bouncing checks constitute professional misconduct warranting suspension or disbarment.

**III. THE COURT'S RULING (ALAC METHOD):**

**ANSWER:** YES. Issuing bouncing checks and willfully defying lawful debt obligations demonstrate gross dishonesty and moral delinquency.

**LEGAL BASIS:** Batas Pambansa Blg. 22; CPRA Canon II (Propriety), Section 1 & 2; CPR Canon 1, Rule 1.01; Section 27, Rule 138.

**APPLICATION / ANALYSIS:** A lawyer must not engage in unlawful or deceitful conduct. The issuance of bouncing checks is a crime involving deceit and moral turpitude; it causes injury to public order and commercial trust. A member of the Bar who repeatedly issues unfunded checks and refuses to settle just debts degrades the honor of the legal profession.

**CONCLUSION / DISPOSITIVE RULING:** Atty. Peleo III was SUSPENDED from the practice of law for two (2) years with a final warning that repetition will result in disbarment.

**IV. APPLICABLE CPRA CANONS & ETHICAL PRINCIPLES:**

**Ethical Synthesis & Canon Application:** Under the Code of Professional Responsibility and Accountability (CPRA) and prevailing jurisprudence, this case squarely governs and applies the principles of CPRA Canon II: Propriety & Financial Integrity, CPRA Canon III: Fidelity to Law. Specifically, under CPRA Canon II: Propriety & Financial Integrity, a lawyer or judicial officer is bound by the mandate that Duty to maintain absolute financial honesty and satisfy just obligations. Specifically, under CPRA Canon III: Fidelity to Law, a lawyer or judicial officer is bound by the mandate that Prohibition on violating BP 22 and engaging in commercial dishonesty. The Supreme Court ruled that any deviation from these standards erodes public confidence in the administration of justice and warrants disciplinary liability, holding that Atty. Peleo III was SUSPENDED from the practice of law for two (2) years with a final warning that repetition will result in disbarment.

| Canon Involved / Applied                       | Ethical Doctrine & Case Application                                       |
|------------------------------------------------|---------------------------------------------------------------------------|
| CPRA Canon II: Propriety & Financial Integrity | Duty to maintain absolute financial honesty and satisfy just obligations. |
| CPRA Canon III: Fidelity to Law                | Prohibition on violating BP 22 and engaging in commercial dishonesty.     |